

HOUSE No. 4615

House bill No. 4601, as amended and passed to be engrossed by the House. October 15, 2025.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects.

Whereas, The deferred operation of this act would tend to defeat its purposes, which are to make supplemental appropriations for fiscal year 2025 and to make certain changes in law, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for supplementing certain items in the general appropriation act
2 and other appropriation acts for fiscal year 2025, the sums set forth in section 2 are hereby
3 appropriated from the General Fund or the Transitional Escrow Fund established in section 16 of
4 chapter 76 of the acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022, unless
5 specifically designated otherwise in this act or in those appropriation acts, for the several
6 purposes and subject to the conditions specified in this act or in those appropriation acts, and
7 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
8 2025. These sums shall be in addition to any amounts previously appropriated and made
9 available for the purposes of those items. These sums shall be made available through the fiscal
10 year ending June 30, 2026.

11 SECTION 2.

12 JUDICIARY

13 0321-0001 Commission on Judicial Conduct.....\$100,000

14 *Committee for Public Counsel Services*

15 0321-1520 Indigent Persons Fees and Court Costs..... \$2,500,000

16 DISTRICT ATTORNEYS

17 *Suffolk District Attorney's Office*

18 0340-0100 Suffolk District Attorney.....\$700,000

19 0340-8908 District Attorneys' Wide Area Network.....\$90,663

20 EXECUTIVE OFFICE OF ADMINISTRATION AND FINANCE

21 1595-6153 No Cost Calls Trust Fund Transfer.....\$12,500,000

22 EXECUTIVE OFFICE OF EDUCATION

23 *Department of Elementary and Secondary Education*

24 1596-2422 School Meals..... \$12,000,000

25 Education and Transportation Fund...100%

26 EXECUTIVE OFFICE OF ENERGY AND ENVIRONMENTAL AFFAIRS

27 *Office of the Secretary*

28 1599-0093 Clean Water Trust Contract Assistance.....\$6,779,246

29 EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

30 *Office of the Secretary*

31 4000-0700 MassHealth Fee for Service Payments..... \$2,046,164,359

32 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

33 *Department of State Police*

34 8100-1001 Department of State Police..... \$3,500,255

35 *Department of Correction*

36 8900-0001 Department of Correction Facility Operations..... \$7,184,865

37 LEGISLATURE

38 *House of Representatives*

39 9600-0000 House of Representatives..... \$8,100,000

40 SECTION 2A. To provide for certain unanticipated obligations of the commonwealth, to
41 provide for an alteration of purpose for current appropriations, and to meet certain requirements
42 of law, the sums set forth in this section are hereby appropriated from the General Fund or the
43 Transitional Escrow Fund established in section 16 of chapter 76 of the acts of 2021, as amended
44 by section 4 of chapter 98 of the acts of 2022, unless specifically designated otherwise in this
45 section, for the several purposes and subject to the conditions specified in this section, and
46 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,

47 2025. Except as otherwise stated, these sums shall be made available through the fiscal year
48 ending June 30, 2026.

49 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

50 *Department of Revenue*

51 1233-1818 For fiscal year 2023 and fiscal year 2024 payments due to cities and towns
52 pursuant to section 5 of chapter 64N of the General Laws.....\$1,250,000

53 Marijuana Regulation Fund...100%

54 *Reserves*

55 1599-1214 For a reserve for expansion, upgrades or enhancements to staffing,
56 operations or infrastructure for new and existing facilities that treat men with an alcohol or
57 substance use disorder under sections 1 and 35 of chapter 123 of the General Laws; provided,
58 that the secretary of administration and finance may transfer funds from this item to state
59 agencies as defined in section 1 of chapter 29 of the General
60 Laws..... \$14,000,000

61 1599-0300 For a reserve to fund an awareness campaign on new federally imposed
62 reporting requirements and vaccine outreach and education efforts; provided, that not less than
63 \$10,000,000 shall be expended for Health Care for All, Inc. to work with community-based
64 organizations to conduct health coverage enrollment assistance in targeted areas at risk of losing
65 coverage due to new federally imposed reporting requirements, as well as support vaccine
66 outreach and education efforts..... \$10,000,000

67 OFFICE OF THE COMPTROLLER

68 *Executive Office of Housing and Livable Communities*

69 1595-0604 For an operating transfer to the Housing Preservation and Stabilization Trust Fund

70 established in section 60 of chapter 121B of the General Laws..... \$35,000,000

71 *Executive Office of Administration and Finance*

72 1595-0605 For an operating transfer to the Sports and Entertainment Events Fund established

73 in section 13W of chapter 23A of the General Laws; provided, that not less than \$10,000,000

74 shall be expended to support costs related to 2026 World Cup matches hosted in the

75 commonwealth.....\$15,000,000

76 MASSACHUSETTS DEPARTMENT OF TRANSPORTATION

77 1596-2527 For the cost of snow and ice removal services incurred by the Massachusetts

78 Department of Transportation; provided, that funds in this item may be transferred to the

79 Massachusetts Transportation Trust Fund established in section 4 of chapter 6C of the General

80 Laws.....\$60,727,344

81 Education and Transportation Fund...100%

82 EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

83 *Office of the Secretary*

84 4000-0010 For direct supports to reproductive health care providers to maintain continuity of

85 access to services at risk of federal funding reductions including, but not limited to, Medicaid

86 reimbursements..... \$5,000,000

SECTION 2B. To provide for supplementing certain intragovernmental chargeback authorizations in the general appropriation act and other appropriation acts for fiscal year 2025, to provide for certain unanticipated intragovernmental chargeback authorizations, to provide for an alteration of purpose for current intragovernmental chargeback authorizations and to meet certain requirements of law, the sum set forth in this section is hereby authorized from the Intragovernmental Service Fund established in section 2Q of chapter 29 of the General Laws for the several purposes specified in this section or in the appropriation acts and subject to the provisions of law regulating the disbursement of public funds for the fiscal year ending June 30, 2025. This sum shall be in addition to any amounts previously authorized and made available for the purposes of this item. These sums shall be made available through the fiscal year ending June 30, 2026.

TREASURER AND RECEIVER-GENERAL

Office of the Treasurer and Receiver-General

0699-0018	Agency Debt Service Programs.....	\$21,000,000
-----------	-----------------------------------	--------------

SECTION 2C.I. For the purpose of making available in fiscal year 2026 balances of appropriations which otherwise would revert on June 30, 2025, the unexpended balances of the appropriations listed below, not to exceed the amount specified below for each item, are hereby re-appropriated for the purposes of and subject to the conditions stated for the corresponding item in sections 2 or 2F of chapter 140 of the acts of 2024. However, for items which do not appear in said sections 2 or 2F of said chapter 140 of the general appropriation act, the amounts in this section are re-appropriated for the purposes of and subject to the conditions stated for the corresponding item in sections 2 or 2A of this act or in prior appropriation acts. Amounts in this

109 section are re-appropriated from the fund or funds designated for the corresponding item in said
110 sections 2 or 2F of said chapter 140; provided, however, that for items which do not appear in
111 said sections 2 or 2F of said chapter 140, the amounts in this section are re-appropriated from the
112 fund or funds designated for the corresponding item in sections 2 through 2F of this act or in
113 prior appropriation acts. The unexpended balance of each appropriation in the Massachusetts
114 management accounting and reporting system with a secretariat code of 01 or 17 is hereby re-
115 appropriated for the purposes of and subject to the conditions stated for the corresponding item
116 in said section 2 of said chapter 140. The sums reappropriated in this section shall be in addition
117 to any amounts available for said purposes.

118 JUDICIARY

119 *Supreme Judicial Court*

120 0320-0003 Supreme Judicial Court..... \$400,000

121 *Commission on Judicial Conduct*

122 *Appeals Court*

123 0322-0100 Appeals Court..... \$175,000

124 DISTRICT ATTORNEYS

125 *District Attorneys' Association*

126 0340-9111 District Attorneys' Association..... \$307,101

127 TREASURER AND RECEIVER-GENERAL

128		<i>Office of the Treasurer and Receiver-General</i>	
129	0610-2000	Welcome Home Bill Bonus Payments.....	\$600,000
130		POLICE REFORM COMMISSIONS	
131	0800-0000	Massachusetts Police Officer Standards and Training Commission.....	\$73,853
132		OFFICE OF THE CHILD ADVOCATE	
133	0930-0100	Office of the Child Advocate.....	\$200,000
134	0930-0101	Center on Child Wellbeing and Trauma.....	\$1,900,000
135		CENTER FOR HEALTH INFORMATION AND ANALYSIS	
136	4100-0060	Center for Health Information and Analysis.....	\$693,500
137	4100-0063	Betsy Lehman Center.....	\$395,450
138		EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE	
139		<i>Health Policy Commission</i>	
140	1450-1200	Health Policy Commission.....	\$750,000
141		<i>Reserves</i>	
142	1599-4448	Collective Bargaining Reserve.....	\$34,000,000
143		EXECUTIVE OFFICE OF TECHNOLOGY SERVICES AND SECURITY	
144	1790-1700	Core Technology Services and Security.....	\$355,089

145 EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

146 *Massachusetts Commission for the Deaf and Hard of Hearing*

147 4125-0100 Massachusetts Commission for the Deaf and Hard of Hearing.....\$170,000

148 *Department of Transitional Assistance*

149 4400-1000 Department of Transitional Assistance Administration and Operation..\$2,813,484

150 EXECUTIVE OFFICE OF VETERANS’ SERVICES

151 *Veterans’ Services*

152 1410-0630 Agawam and Winchendon Veterans’ Cemeteries.....\$185,000

153 *Veterans’ Home in Chelsea*

154 4180-0100 Veterans’ Home in Chelsea Administration and Operations.....\$916,018

155 *Veterans’ Home in Holyoke*

156 4190-0100 Veterans’ Home in Holyoke Administration and Operations..... \$150,018

157 MASSACHUSETTS DEPARTMENT OF TRANSPORTATION

158 1596-2401 Federal Matching Funds..... \$23,000,000

159 1596-2406 Regional Transit Funding and Grants..... \$10,155,416

160 EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT

161 *Division of Insurance*

162 7006-0020 Division of Insurance.....\$1,274,008

163 *Massachusetts Marketing Partnership*

164 7008-0900 Massachusetts Office of Travel and Tourism.....\$100,000

165 EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES

166 7004-0102 Homeless Individual Shelters..... \$2,100,000

167 EXECUTIVE OFFICE OF EDUCATION

168 *Department of Early Education and Care*

169 3000-1000 Department of Early Education and Care.....\$7,500,000

170 Department of Elementary and Secondary Education

171 7061-9805 Teacher Diversity Initiative \$8,300,000

172 Department of Higher Education

173 7066-0025 Performance Management Set Aside..... \$2,000,000

174 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

175 *Department of State Police*

176 8100-0515 New State Police Class.....\$9,600,000

177 *Department of Fire Services*

178 8324-0000 Department of Fire Services Administration.....\$560,750

179 8324-0050 Local Fire Department Projects and Grants \$250,000

180 SECTION 2C.II. For the purpose of making available in fiscal year 2026 balances of
181 retained revenue and intragovernmental chargeback authorizations which otherwise would revert
182 on June 30, 2025, the unexpended balances of the authorizations listed below, not to exceed the
183 amount specified below for each item, are hereby re-authorized for the purposes of and subject to
184 the conditions stated for the corresponding item in sections 2 through 2F, inclusive, of chapter
185 140 of the acts of 2024. However, for items which do not appear in said sections 2 through 2F,
186 inclusive, of said chapter 140, the amounts in this section are re-authorized for the purposes of
187 and subject to the conditions stated for the corresponding item in sections 2 through 2F,
188 inclusive, of this act or in prior appropriation acts. Amounts in this section are re-authorized
189 from the fund or funds designated for the corresponding item in sections 2 through 2F, inclusive,
190 of the general appropriation act; provided, however, for items which do not appear in sections 2
191 through 2F, inclusive, of the general appropriation act, the amounts in this section are re-
192 authorized from the fund or funds designated for the corresponding item in sections 2 through
193 2F, inclusive, of this act or in prior appropriation acts. The sums re-authorized in this section
194 shall be in addition to any amounts available for those purposes.

195 MASSACHUSETTS COMMISSION AGAINST DISCRIMINATION

196 0940-0103 Equal Employment Opportunity Commission Retained Revenue..... \$1,205,504

197 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

198 *Operational Services Division*

199 1775-0800 Chargeback for Purchase Operation and Repair of State Vehicles \$200,000

200 EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT

201 *Office of the Secretary*

202 7002-0018 Chargeback for Economic Development IT Costs.....\$3,846,468

203 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

204 *Department of Correction*

205 8900-0021 Chargeback for Prison Industries and Farm Program..... \$430,000

206 SECTION 3. Section 44 of chapter 7C of the General Laws, as appearing in the 2024
207 Official Edition, is hereby amended by striking out, in lines 1 and 11, each time it appears, the
208 figure “58” and inserting in place thereof, in each instance, the following figure:- 57.

209 SECTION 4. Section 46 of said chapter 7C, as so appearing, is hereby amended by
210 striking out, in line 21, the figure “58” and inserting in place thereof the following figure:- 57.

211 SECTION 5. Section 51 of said chapter 7C, as so appearing, is hereby amended by
212 striking out, in line 29, the figure “58” and inserting in place thereof the following figure:- 57.

213 SECTION 6. Section 53 of said chapter 7C, as so appearing, is hereby amended by
214 striking out, in line 4, the figure “58” and inserting in place thereof the following figure:- 57.

215 SECTION 7. Section 54 of said chapter 7C, as so appearing, is hereby amended by
216 striking out, in lines 8, 29 and 45, each time it appears, the figure “58” and inserting in place
217 thereof, in each instance, the following figure:- 57.

SECTION 8. Section 56 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 4, the figure “58” and inserting in place thereof the following figure:- 57.

SECTION 9. Section 57 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 3, the figure “58” and inserting in place thereof the following figure:- 57.

SECTION 10. Section 25 of chapter 10 of the General Laws, as so appearing, is hereby amended by inserting after the word “appropriation”, in line 13, the following words:- ; provided, however, that the commission may enter into contracts or group agreements for lottery games not currently or previously authorized by the commission, resulting in a contractor or licensor to be paid a specified percentage of net or gross revenues of such game, and such payments shall not be subject to appropriation.

SECTION 11. Chapter 23A of the General Laws is hereby amended by inserting after section 13V the following section:-

Section 13W. (a) There shall be established and set up on the books of the commonwealth a separate, non-budgeted special revenue fund known as the Sports and Entertainment Events Fund, which shall be administered by the office of travel and tourism established in section 13F. The fund shall be credited with: (i) revenue from appropriations and other money authorized by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources, including, but not limited to, gifts, grants and donations; and (iii) interest earned on money in the fund. The unexpended balance in the fund at the end of a fiscal year shall not revert to the General Fund and shall remain available for expenditure in subsequent fiscal years

(b)(1) Amounts credited to the fund shall be expended, without further appropriation, for a competitive grant program administered by the office of travel and tourism for major sports or entertainment events to provide: (i) event services; (ii) sports development; (iii) sports marketing; or (iv) construction, functioning or operation of a sports or entertainment event; provided, that in evaluating grant applications, priority shall be given to applicants based upon expected return-on-investment and that clearly identify direct and indirect economic impacts on the tourism industry in the commonwealth and help promote the commonwealth in national and international media; and provided further, that no grant award shall provide more than half of the balance of the fund to any 1 recipient in any calendar year.

(2) Grants under this section shall be awarded in a manner that promotes geographic equity.

(c)(1) Any grant awarded pursuant to clause (i) or (iv) of paragraph (1) of subsection (b) shall require an applicant to provide complete and accurate responses and disclosures for itself and for any contractors or vendors to be utilized for the sports or entertainment event which shall include:

(i) certification that the applicant and any contractors or vendors it utilizes have complied with chapters 149, 151, 151A, 151B and 152 and 29 U.S.C. 201, et seq. and federal anti-discrimination laws for the last 3 calendar years;

(ii) certification that the applicant and any contractors or vendors it utilizes are currently, and shall remain, in compliance with chapters 149, 151, 151A, 151B and 152 and 29 U.S.C. 201, et seq. and federal anti-discrimination laws for the duration of the services or labor;

(iii) a disclosure by the applicant as to whether it and any contractors and vendors it utilizes to support sports or entertainment events have previously contracted with a labor organization, as defined by chapter 150A and section 2 of the National Labor Relations Act, in the commonwealth or elsewhere; and

(iv) a disclosure by the applicant of its plans for assuring labor harmony for the duration of work to support sports or entertainment events both separately and in conjunction with its contractors and vendors.

(2) Any grant awarded pursuant to clause (i) or (iv) of paragraph (1) of subsection (b) for any construction on publicly owned or leased property to support a sports or entertainment event shall require an applicant to provide complete and accurate responses and disclosures for itself and any contractors or sub-contractors to be utilized for the sports or entertainment event which shall include:

(i) certification that the applicant and any contractors and sub-contractors are in compliance with the commonwealth's public procurement and bidding statutes, pursuant to chapters 30, 149 and 149A;

(ii) disclosures in which the applicant shall specify whether it and any contractors and subcontractors on the project participates in a state or federally certified apprenticeship program and the number of apprentices the apprenticeship program has trained to completion for each of the last 5 calendar years;

(iii) a requirement that the applicant provide a statement of intent concerning the extent to which the applicant and any contractors and sub-contractors on the project intend to utilize apprentices on the project if a grant is awarded; and

(iv) certification that the applicant and any contractors or sub-contractors have not been debarred by the federal government or the commonwealth.

(3) Any grant awarded pursuant to clauses (i) or (iv) of paragraph (1) of subsection (b) for the procurement of services, labor, equipment or supplies pursuant to chapter 30B on publicly owned or leased property to support a sports or entertainment event shall require an applicant to provide complete and accurate responses and disclosures for the applicant and any vendors to be utilized for the sports or entertainment event which shall include:

(i) certification that the applicant and each of its vendors are in compliance with chapter 30B;

(ii) disclosures in which the applicant shall specify whether it and each of its vendors on the project has established or participates in workforce development programs within the commonwealth and the number of residents of the commonwealth the workforce development programs have trained to completion for each of the last 5 years; and

(iii) a statement of intent concerning the extent to which the applicant and its vendors intend to utilize workers in the commonwealth to fulfill services and labor requirements.

(4)(A) All applicants shall timely provide the documentation, certifications and disclosures pursuant to paragraphs (1), (2) and (3) as part of their initial application. Failure to provide the documentation, certifications and disclosures shall disqualify the applicant from receiving grant funding.

(B) A successful applicant's good faith failure to provide complete and accurate documentation, certifications and disclosures pursuant to paragraphs (1), (2) and (3) shall result

in suspension from the project for a period of 30 days; provided, that during said 30 days the office of travel and tourism shall provide an opportunity for the applicant to address application deficiencies to the satisfaction of the office of travel and tourism.

(C) Failure to cure deficiencies shall result in termination.

(D) A successful applicant's willful failure to provide accurate documentation, certification and disclosures pursuant to paragraphs (1), (2) and (3) shall result in permanent termination of grant funding and shall trigger the return of all funds awarded within 30 days.

(5) The attorney general shall enforce this subsection for any project awarded a grant pursuant to this section.

(d) Annually, not later than January 1, the office of travel and tourism shall submit a report to the house and senate committees on ways and means and the joint committee on tourism, arts and cultural development providing: (i) the number of grant awards; (ii) the geographic location of the grant award; (iii) the dollar amount of the grant awards; (iv) data pertaining to return-on-investment; and (v) information and analysis pertaining to the impacts on the economy in the region receiving the grant award and the commonwealth overall.

SECTION 12. Section 3 of chapter 23I of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 42, the word "Six" and inserting in place thereof the following word:- Five.

SECTION 13. Section 2HHHH of chapter 29 of the General Laws, as so appearing, is hereby amended by inserting after the figure "71", in lines 6 and 15, each time it appears, the following words:- , section 74E of chapter 112, section 18 of chapter 112A.

SECTION 14. Section 2YYYY of said chapter 29, as so appearing, is hereby amended by striking out the second paragraph and inserting in place thereof the following paragraph:-

The secretary may expend, without further appropriation: (i) not more than \$160,000,000 per fiscal year from the fund to expand and support the residential treatment system to treat individuals with a substance use disorder or co-occurring mental health and substance use disorder and to expand and increase access to the 24-hour diversionary system; (ii) not more than \$135,000,000 per fiscal year from the fund to reduce stigma, expand access, support implementation and increase competencies for medications for substance use disorder; (iii) not more than \$35,000,000 per fiscal year from the fund to support access to evidence-based recovery services through peer and paraprofessional services; and (iv) not more than \$85,000,000 per fiscal year from the fund to ensure appropriate assessment for levels of care utilizing American Society of Addiction Medicine or other evidence-based modalities and to support integration of physical health, mental health and substance use disorder care across all provider settings. To accommodate timing discrepancies between the receipt of revenues and related expenditures, the fund may incur expenses, and the comptroller shall certify for payment, amounts not to exceed the most recent revenue estimate as certified by the MassHealth director, as reported in the state accounting system. Amounts credited to the fund shall not be subject to further appropriation and money remaining in the fund at the end of a fiscal year shall not revert to the General Fund and shall be available for expenditure in the subsequent fiscal year.

SECTION 14A. Section 2AAAAA of chapter 29, as so appearing, is hereby further amended by striking out the second paragraph and inserting in place thereof the following paragraph:-

There shall be credited to the fund: (i) any transfers from the Health Safety Net Trust Fund established in section 66 of chapter 118E; (ii) any revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (iii) an amount equal to any federal financial participation revenues claimed and received by the commonwealth for eligible expenditures made from the fund; and (iv) interest earned on any money in the fund. Money from the fund shall be expended for payments to providers that qualify under an approved federal waiver and in accordance with said waiver. Amounts credited to the fund shall not be subject to further appropriation. At the end of each fiscal year, the secretary of health and human services shall determine, in the secretary's sole discretion, the amount of any money in the fund that is in excess of the money needed to make payments from the fund in accordance with said waiver; provided, however, that the money needed to make such payments shall include any money needed to make any payments that are unearned as of the end of such year, but potentially earned in a subsequent year. Subject to the terms of said waiver, (A) for periods applicable to the waiver beginning on or after January 1, 2025, the secretary of health and human services shall transfer to the Health Safety Net Trust Fund established in said section 66 of said chapter 118E the state share of any such excess money, excluding any federal funds; and (B) for periods applicable to the waiver through December 31, 2024, the secretary of health and human services shall transfer to said Health Safety Net Trust Fund the state share of any such excess money, multiplied by a fraction, the numerator of which is \$62,500,000 and the denominator of which is the total amount transferred to or deposited in the fund for such fund year, excluding federal funds. Money remaining in the fund at the end of a fiscal year shall not revert to the General Fund and shall be available for expenditure in subsequent fiscal years. To accommodate timing discrepancies between the receipt of revenue and related expenditures, the

comptroller may certify for payment amounts not to exceed the most recent revenue estimates as certified by the secretary of health and human services to be transferred, credited or deposited under this section.

SECTION 14B. Section 2TTTTT of said chapter 29, as amended by section 51 of chapter 140 of the acts of 2024, is hereby further amended by striking out subsection (c) and inserting in place thereof the following subsection:-

(c)(1) The secretary shall expend money in the fund, including all amounts credited to the fund, for payments to qualifying acute hospital providers under contract with the executive office of health and human services or under subcontracts with care organizations that contract with the executive office in connection with the MassHealth program as provided in this subsection.

(2) The secretary shall annually expend amounts from the fund averaging, for the 2-year period from October 1, 2025 to September 30, 2027, inclusive, not less than \$2,264,500,000 per year; provided, however, that all such payments shall fall into 1 of the following categories: (i) health equity incentive payments; (ii) clinical quality incentive payments; (iii) other incentive payments; (iv) rate payments for services provided to MassHealth members; (v) targeted payments to: (A) freestanding pediatric acute hospitals; (B) nonprofit teaching acute hospitals that provide medical, surgical, emergency and obstetrical services and are affiliated with a state-owned medical school; (C) freestanding cancer hospitals; (D) the acute hospital that had the lowest statewide commercial relative price in fiscal year 2019, as reported by the center for health information and analysis; (E) the independent group 1 safety net hospital that had the largest percentile of operating loss in fiscal year 2022 as reported by the center for health information and analysis; (F) the acute hospital that had the highest statewide public payer mix

in fiscal year 2023, as determined by the secretary; (G) the acute hospital affiliated with a health system with 2 or more critical access hospitals operating in the commonwealth in calendar year 2025, as determined by the secretary; or (H) to any non-state-owned public hospital in the commonwealth, as determined by the secretary. The secretary may determine funding allocations among and within each such category within a given year; provided, however, that such allocations shall be consistent with all approved federal waivers and state plan provisions; and provided further, that the secretary shall allocate an average of not less than \$1,280,000,000 per year, for the 2-year period from October 1, 2025 to September 30, 2027, for the rate payments described in clause (iv), with an average of not less than \$92,000,000 allocated for group 1 safety net hospitals for such 2-year period, an average of not less than \$460,000,000 allocated for group 2 safety net hospitals for such 2-year period and an average of not less than \$728,000,000 allocated across all acute hospitals for such 2-year period.

(3) Of the targeted payments described in clause (v) of the first sentence of paragraph (2), the secretary shall expend annually from the fund: (i) \$70,000,000 to freestanding pediatric acute hospitals, of which at least 98 per cent shall be paid to the freestanding pediatric hospital that had the largest volume of inpatient discharges in fiscal year 2019; (ii) \$35,000,000 to nonprofit teaching acute hospitals that provide medical, surgical, emergency and obstetrical services and are affiliated with a state-owned medical school; (iii) \$14,000,000 to the acute hospital that had the lowest statewide commercial relative price in fiscal year 2019 as reported by the center for health information and analysis; (iv) \$6,000,000 to freestanding cancer hospitals; (v) \$10,000,000 to the independent group 1 safety net hospital that had the largest operating percentile loss in fiscal year 2022, as reported by the center for health information and analysis; (vi) \$6,000,000 to the acute hospital that had the highest statewide public payer mix in fiscal year

2023, as determined by the secretary; (vii) \$6,000,000 to the acute hospital affiliated with a health system with 2 or more critical access hospitals operating in the commonwealth in calendar year 2025, as determined by the secretary; and (viii) \$2,000,000 to any non-state-owned public hospital in the commonwealth, as determined by the secretary.

(4) Of the incentive payments described in clauses (i) and (ii) of paragraph (2), the secretary shall make interim payments to qualifying hospitals based on the secretary's estimate of each such hospital's final payment for the measurement period. As soon as practicable after the close of the measurement period, the secretary shall determine the final amount of each qualifying hospital's incentive payments and shall reconcile each hospital's interim payment with its final payment.

(5) If, in any fiscal year, the commonwealth fails to secure federal financial participation necessary to make expenditures described in this section, the total hospital assessment amount described in section 67 of chapter 118E is insufficient to support the distributions to the fund required to be made from the Health Safety Net Trust Fund established in section 66 of chapter 118E or such distributions are otherwise not made due to limitations on federal matching, applicable payment ceilings or other restrictions under state or federal law, then the expenditures otherwise required to be made from the fund shall be reduced proportionally based on the total amount available for expenditure.

SECTION 14C. Subsection (c) of section 2UUUUU of said chapter 29, as appearing in the 2024 Official Edition, is hereby further amended by adding the following paragraph:

(3) If, in any fiscal year, the commonwealth fails to secure federal financial participation necessary to make expenditures described in this section, the total hospital assessment amount

described in section 67 of chapter 118E is insufficient to support the distributions to the fund required to be made from the Health Safety Net Trust Fund established in section 66 of chapter 118E, or such distributions are otherwise not made due to limitations on federal matching, applicable payment ceilings or other restrictions under state or federal law, then the expenditures otherwise required to be made from the fund shall be reduced proportionally based on the total amount available for expenditure.

SECTION 15. Section 2FFFFFFF of said chapter 29, inserted by section 58 of chapter 140 of the acts of 2024, is hereby amended by striking out subsection (c) and inserting in place thereof the following subsection:-

(c) The secretary shall annually expend money in the fund, including all amounts credited to the fund, for payments to Medicaid managed care organizations, as such term is defined in section 64 of chapter 118E; provided, that such amounts expended annually shall be not less than the Medicaid managed care organization revenue amount, as such term is defined in said section 64; and provided further, that such expenditures shall be consistent with all approved federal waivers and state plan provisions.

SECTION 15A. Said chapter 29 is hereby further amended by inserting after section 2LLLLLL, inserted by section 18 of chapter 14 of the acts of 2025, the following section:-

Section 2MMMMMM. (a) There shall be established and set up on the books of the commonwealth a separate, non-budgeted special revenue fund known as the Western Massachusetts Hospital Fund, which shall be administered by the commissioner of public health.

(b) There shall be credited to the fund: (i) appropriations or other money authorized or transferred by the general court and specifically designated to be credited to the fund; (ii) funds

458 from public and private sources, including, but not limited to, gifts, grants and donations; and
459 (iii) any interest earned on money in the fund.

460 (c) Amounts credited to the fund may be expended without further appropriation by the
461 commissioner of public health for any purpose related to the operation of the Western
462 Massachusetts hospital. No expenditure made from the fund shall cause the fund to be in deficit
463 at any point.

464 SECTION 16. Chapter 31 of the General Laws is hereby amended by adding the
465 following section:-

466 Section 79. Following their original appointment and oath as a permanent full-time
467 environmental police officer in the police force of the office of law enforcement established by
468 section 10A of chapter 21A, a person shall perform the duties of such position on a full-time
469 basis for a probationary period of 12 months before they shall be considered a full-time tenured
470 employee in such position. The administrator, with the approval of the commission, may
471 establish procedures to ensure the evaluation by appointing authorities, prior to the end of such
472 probationary period, of the performance of persons appointed as police officers in such force.
473 Unless otherwise provided by civil service rule, and with appropriate adjustments to the timing
474 of performance evaluations called for therein, the second paragraph of section 34 shall apply to
475 persons covered by this section.

476 SECTION 16A. Section 1 of chapter 32 of the General Laws, as appearing in the 2024
477 Official Edition, is hereby amended by striking out the definition of “Violent act injury” and
478 inserting in place thereof the following definition:-

“Violent act injury”, a catastrophic or life-threatening permanent bodily injury sustained as a direct and proximate result of a violent attack upon a person by means of a dangerous weapon, which is used in a manner intended to cause serious injury or death, including, but not limited to, a firearm, knife, automobile or explosive device.

SECTION 17. Paragraph (a) of subdivision (2) of section 26 of said chapter 32, as so appearing, is hereby amended by adding the following sentence:- This subdivision shall not apply to a member in service who is physically not able to perform the essential duties of the member’s job by reason of violent act injury.

SECTION 18. Said section 26 of said chapter 32, as so appearing, is hereby further amended by inserting after subdivision (2) the following subdivision:-

(2½) Section 7 shall apply to any member in service classified in Group 3 who is an officer of the department of state police if the rating board, after an examination of such officer by a registered physician appointed by it, reports in writing to the state board of retirement that such officer is physically incapacitated for the performance of duty by reason of violent act injury occurring during the performance and within the scope of the officer’s duty and without contributory negligence on the officer’s part, and that such incapacity is likely to be permanent.

SECTION 19. Section 1 of chapter 75 of the General Laws, as so appearing, is hereby amended by striking out, in line 14, the figure “58” and inserting in place thereof the following figure:- 57.

SECTION 20. Subsection (a) of section 24N of chapter 111 of the General Laws, as so appearing, is hereby amended by striking out the definition of “Routine childhood immunizations” and inserting in place thereof the following definition:-

“Routine childhood immunizations”, immunizations for children until their nineteenth birthday as determined by the commissioner.

SECTION 21. Subsection (c) of said section 24N of said chapter 111, as so appearing, is hereby amended by striking out the last 5 sentences and inserting in place thereof the following 6 sentences:-

The council shall recommend the list of routine childhood immunizations, including types of vaccines to be purchased and shall take into account provider preference, cost, availability and other factors as determined by the council. The commissioner shall recommend the amount of funding needed each fiscal year by calculating the total non-federal program cost. The council shall make recommendations to the commissioner on whether the commissioner may authorize provider choice of more than 1 comparable brand or type for a routine childhood immunization vaccine. In its recommendations, the council shall examine the feasibility, costs and benefits of authorizing provider choice, provide a schedule of the cost of each comparable brand or type of a vaccine recommended for provider choice and demonstrate that the estimated vaccine cost of authorizing provider choice would not be substantially greater than the estimated vaccine cost of purchasing a single brand or type of a vaccine. The commissioner of public health shall determine the final list of routine childhood immunizations and vaccines to be purchased. The council shall also consider other vaccine-related questions presented by the commissioner.

SECTION 22. Said section 24N of said chapter 111, as so appearing, is hereby further amended by striking out, in lines 109 to 111, inclusive, the words “Advisory Committee on

522 Immunization Practices of the Centers for Disease Control and Prevention” and inserting in place
523 thereof the following word:- commissioner.

524 SECTION 22A. Chapter 112 of the General Laws is hereby amended by striking out
525 section 12C, as so appearing, and inserting in place thereof the following section:-

526 Section 12C. No physician, nurse or other health care professional licensed under this
527 chapter or otherwise authorized within their scope of practice, by statewide standing order or by
528 department of public health designation to prescribe, dispense or administer vaccines shall be
529 liable for any injury caused by an act or omission in prescribing, dispensing, ordering, furnishing
530 or administering a vaccine or other immunizing agent, including the residual effects of the
531 vaccine or immunizing agent; provided, that the immunization is required by state law,
532 administered in accordance with guidance from the department of public health or authorized
533 under public health programs and the act or omission does not constitute willful misconduct or
534 gross negligence.

535 SECTION 23. Said chapter 112 is hereby further amended by inserting after section 74D
536 the following section:-

537 Section 74E. (a) The board of registration in nursing may obtain a state and national
538 fingerprint-based criminal background check, as authorized by Public Law 92-544, to determine
539 the suitability of an applicant for a license to practice nursing pursuant to sections 74, 74A, 76
540 and 80B, including, but not limited to, registered nurses, licensed practical nurses and advanced
541 practice registered nurses.

542 (b) Registered nurses subject to background checks pursuant to this section shall be
543 individuals who hold ultimate responsibility for direct and indirect nursing care and are seeking:

(i) licensure as a registered nurse pursuant to this chapter; and (ii) to provide nursing care, health maintenance, teaching, counseling, planning and restoration for optimal functioning and comfort of patients they serve within the commonwealth. For the purposes of this section, “advanced practice registered nurse” shall mean a registered nurse authorized by the board of registration in nursing to perform an expanded scope of practice when caring for patients in the commonwealth consistent with section 80B.

(c) Licensed practical nurses subject to background checks pursuant to this section shall be individuals who are seeking: (i) licensure as a practical nurse pursuant to this chapter; and (ii) to provide nursing care and health maintenance services to patients within the commonwealth.

(d) An individual applying to the board of registration in nursing for a license to practice nursing shall submit a full set of fingerprints to the identification section of the department of state police to obtain a state and national fingerprint-based criminal background check, as authorized by Public Law 92-544, to determine the suitability of any applicant for licensure.

(e) Fingerprints shall be submitted to the state identification section of the department of state police for a state criminal history check and forwarded to the Federal Bureau of Investigation for a national criminal history check in accordance with the policies and procedures established by the state identification section and by the department of criminal justice information services. Fingerprint submissions may be retained by the Federal Bureau of Investigation, the state identification section of the department of state police, and the department of criminal justice information services to assist the board of registration in nursing to ensure the continued suitability of these licensees and persons subject to criminal background checks under this section. The department of criminal justice information services may

disseminate the results of the state and national criminal background checks to authorized staff employed by the department of public health and board of registration in nursing.

(f) Each applicant shall pay a fee to be established by the secretary of administration and finance, in consultation with the secretary of public safety, to offset the costs of operating and administering a fingerprint-based criminal background check system. The secretary of administration and finance, in consultation with the secretary of public safety, may increase the fee accordingly if the Federal Bureau of Investigation increases its fingerprint background check service fee. Any fees collected from fingerprinting activity under this section shall be deposited into the Fingerprint-Based Background Check Trust Fund established in section 2HHHH of chapter 29.

(g) The board of registration in nursing may use the results of the criminal history record check for the sole purpose of determining the applicant's eligibility for a license to practice nursing. The department of public health and board of registration in nursing shall not disseminate the criminal history record check information to any other entity.

(h) The department of public health and board of registration in nursing may receive all available criminal offender record information, juvenile adjudications and delinquency matters, sealed records and the results of checks of state and national criminal history information databases under Public Law 92-544. Upon receipt of the results of the state and national criminal background checks, the department of public health, board of registration in nursing and authorized staff shall treat the information according to sections 167 to 178, inclusive, of chapter 6 and the regulations thereunder regarding criminal offender record information.

(i) The board of registration in nursing may promulgate regulations necessary to carry out this section.

SECTION 23A. Section 64 of chapter 118E of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out the definition of “Assessed charges” and inserting in place thereof the following definition:-

“Assessed charges”, gross patient service revenue attributable to all patients less gross patient service revenue attributable to Title XVIII, XIX and XXI programs, as such revenues are reported to the center for health information and analysis and as determined by the secretary.

SECTION 24. Said section 64 of said chapter 118E, as so appearing, is hereby further amended by striking out the definition of “Managed care organization reinvestment revenue amount” and inserting in place thereof the following 3 definitions:-

“Managed care organization services assessment rate”, the rate calculated annually by dividing the non-Medicaid managed care organization revenue amount by the total managed care organization services subject to assessment that are not Medicaid managed care organization services subject to assessment.

“Medicaid managed care organization revenue amount”, an amount calculated annually by multiplying the Medicaid managed care organization services subject to assessment by the managed care organization services assessment rate.

“Non-Medicaid managed care organization revenue amount”, an amount equal, for each calendar year, to the sum of the following in the same year less \$20,000,000: (i) the health safety net managed care organization revenue amount; (ii) the Massachusetts Child Psychiatry Access

608 Project revenue amount; (iii) the immunization revenue amount; (iv) the health policy
609 commission revenue amount; (v) the center for health information and analysis revenue amount;
610 (vi) the amount transferred, pursuant to section 66, to the Behavioral Health Access and Crisis
611 Intervention Trust Fund established in section 2WWWW of chapter 29; and (vii) the amounts
612 necessary to incorporate prospectively all adjustments or reconciliations to account for under-
613 assessments in the prior year.

614 SECTION 25. Said section 64 of said chapter 118E, as so appearing, is hereby further
615 amended by striking out the definition of “Total managed care organization services assessment
616 amount” and inserting in place thereof the following definition:-

617 “Total managed care organization services revenue amount”, an amount equal, for each
618 calendar year, to the sum of the following in the same year: (i) the Medicaid managed care
619 organization revenue amount; and (ii) the non-Medicaid managed care organization revenue
620 amount.

621 SECTION 25A. Said section 64 of said chapter 118E, as so appearing, is hereby amended
622 by striking out the figure “\$1,484,050,000” and inserting in place thereof the following figure:-
623 \$1,534,050,000.

624 SECTION 26. Section 66 of said chapter 118E, as so appearing, is hereby amended by
625 striking out, in lines 55 and 56, the words “managed care organization reinvestment” and
626 inserting in place thereof the following words:- Medicaid managed care organization.

627 SECTION 27. Said section 66 of said chapter 118E, as so appearing, is hereby further
628 amended by striking out, in lines 85 and 86, the words “total managed care organization services

assessment” and inserting in place thereof the following words:- non-Medicaid managed care organization revenue.

SECTION 27A. Said section 66 of said chapter 118E, as so appearing, is hereby further amended by striking out subsection (b) and inserting in place thereof the following 2 subsections:-

(b) The fund shall consist of: (i) all amounts paid by hospitals and managed care organizations under sections 67 and 68; (ii) all appropriations for the purpose of payments to acute hospitals or community health centers for health services provided to uninsured and underinsured residents; (iii) any transfers from the Commonwealth Care Trust Fund established in section 2000 of chapter 29; (iv) any transfers from the Safety Net Provider Trust Fund established in section 2AAAAA of chapter 29; (v) any transfers from the Hospital Investment and Performance Trust Fund established in section 2TTTTT of chapter 29; (vi) any transfers from the Managed Care Organization Services Reinvestment Fund established in section 2FFFFFF of chapter 29; and (vii) all property and securities acquired by and through the use of money belonging to the fund and all interest thereon. There shall also be credited to the fund an amount equal to any federal financial participation claimed and received by the commonwealth for eligible expenditures made from the fund and financed by money transferred from the Hospital Investment and Performance Trust Fund established in section 2TTTTT of chapter 29, the Managed Care Organization Services Reinvestment Fund established in section 2FFFFFF of chapter 29 or from the Safety Net Provider Trust Fund established in section 2AAAAA of chapter 29. To accommodate timing discrepancies between the receipt of such revenue and related expenditures, the comptroller may certify for payment amounts not to exceed the most recent revenue estimates as certified by the secretary of health and human services to be

transferred, credited or deposited under this subsection. Annually, the office shall transfer from the non-federal money in the fund: (A) \$149,300,000 to the Safety Net Provider Trust Fund established in section 2AAAAA of chapter 29; (B) \$1,041,170,000 to the Hospital Investment and Performance Trust Fund established in section 2TTTTT of chapter 29; (C) \$115,500,000 to the Population Health Investment Trust Fund established in section 2UUUUU of chapter 29; (D) \$ 33,169,685 to the Non-Acute Care Hospital Reimbursement Trust Fund established in section 2WWWW of chapter 29; (E) an amount equal to the managed care organization reinvestment revenue amount to the Managed Care Organization Services Reinvestment Fund established in section 2FFFFFF of chapter 29; (F) an amount equal to the Massachusetts Child Psychiatry Access Project revenue amount to the Massachusetts Child Psychiatry Access Project Fund established in section 2EEEEEE of chapter 29; (G) an amount equal to the health policy commission revenue amount to the Healthcare Payment Reform Fund established in section 7 of chapter 6D; (H) an amount equal to the immunization revenue amount to the Vaccine Purchase Fund established in section 24N of chapter 111; (I) \$33,700,000 to the Behavioral Health Access and Crisis Intervention Trust Fund established in section 2WWWWW of chapter 29; (J) an amount equal to the center for health information and analysis revenue amount to the Center for Health Information and Analysis Fund established in section 7A of chapter 12C; and (K) \$35,000,000 to the Essential Community Provider Trust Fund established in section 2PPP of chapter 29. The office shall expend amounts in the fund, except for amounts transferred to the Safety Net Provider Trust Fund, the Hospital Investment and Performance Trust Fund, the Population Health Investment Trust Fund, the Non-Acute Care Hospital Reimbursement Trust Fund, the Managed Care Organization Services Reinvestment Fund, the Massachusetts Child Psychiatry Access Project Fund, the Vaccine Purchase Fund, the Center for Health and

675 Information Analysis Fund, the Healthcare Payment Reform Fund and the Behavioral Health
676 Access and Crisis Intervention Trust Fund, for payments to hospitals and community health
677 centers for reimbursable health services provided to uninsured and underinsured residents,
678 consistent with the requirements of this section, section 69 and the regulations adopted by the
679 office. The amount collected pursuant to clause (viii) of the definition of the total managed care
680 organization services assessment amount in section 64 shall be dedicated to reducing the
681 shortfall, as described in subsection (b) of section 69, for the year prior to the assessment year.
682 The office shall also annually expend money from the fund for the expenses of the executive
683 office, including the health safety net office under subsection (a), for the administration of the
684 health safety net and related assessments. The office shall also expend not more than \$6,000,000
685 annually from the fund for demonstration projects that use case management and other methods
686 to reduce the liability of the fund to acute hospitals. All interest earned on the amounts in the
687 fund shall be deposited or retained in the fund. The director shall from time-to-time requisition
688 from the fund amounts that the director considers necessary to meet the current obligations of the
689 office for the purposes of the fund and estimated obligations for a reasonable future period.

690 (c) For each fiscal year, in the event that federal financial participation is not available for
691 any of the Medicaid expenditures made or to be made from this fund or from amounts transferred
692 from the fund pursuant to paragraphs (A), (B), (C), (D) or (K) of subsection (b), or hospital
693 assessment funding serving as the non-federal share of such expenditures is not available due to
694 the application of any federal law, regulation or policy, such as federal expenditure limits or
695 federal health care-related tax rules, or for any other reason, the amount of each such
696 forementioned transfer from the fund shall be reduced on a pro-rata basis by multiplying each
697 such expenditure or transfer by a fraction, the numerator of which is the aggregate amount of the

transfers from the fund pursuant to paragraphs (A), (B), (C), (D) or (K) of subsection (b) for which federal financial participation will be available and the denominator of which is the aggregate amount the expenditures and transfers from the fund pursuant to paragraphs (A), (B), (C), (D) or (K) of subsection (b) that would otherwise be made.

SECTION 27B. Section 66 of said chapter 118E, as amended by section 27A, is hereby further amended by striking out subsections (b) and (c) and inserting in place thereof the following 2 subsections:-

(b) The fund shall consist of: (i) all amounts paid by hospitals and managed care organizations under sections 67 and 68; (ii) all appropriations for the purpose of payments to acute hospitals or community health centers for health services provided to uninsured and underinsured residents; (iii) any transfers from the Commonwealth Care Trust Fund established in section 2000 of chapter 29; (iv) any transfers from the Safety Net Provider Trust Fund established in section 2AAAAA of chapter 29; (v) any transfers from the Hospital Investment and Performance Trust Fund established in section 2TTTTT of chapter 29; (vi) any transfers from the Managed Care Organization Services Reinvestment Fund established in section 2FFFFFF of chapter 29; and (vii) all property and securities acquired by and through the use of money belonging to the fund and all interest thereon. There shall also be credited to the fund an amount equal to any federal financial participation claimed and received by the commonwealth for eligible expenditures made from the fund and financed by money transferred from the Hospital Investment and Performance Trust Fund established in section 2TTTTT of chapter 29, the Managed Care Organization Services Reinvestment Fund established in section 2FFFFFF of chapter 29 or from the Safety Net Provider Trust Fund established in section 2AAAAA of chapter 29. To accommodate timing discrepancies between the receipt of such revenue and

related expenditures, the comptroller may certify for payment amounts not to exceed the most recent revenue estimates as certified by the secretary of health and human services to be transferred, credited or deposited under this subsection. Annually, the office shall transfer from the non-federal money in the fund: (A) \$149,300,000 to the Safety Net Provider Trust Fund established in section 2AAAAA of chapter 29; (B) \$1,041,170,000 to the Hospital Investment and Performance Trust Fund established in section 2TTTTT of chapter 29; (C) \$115,500,000 to the Population Health Investment Trust Fund established in section 2UUUUU of chapter 29; (D) \$ 33,169,685 to the Non-Acute Care Hospital Reimbursement Trust Fund established in section 2WWWW of chapter 29; (E) an amount equal to the Medicaid managed care organization revenue amount to the Managed Care Organization Services Reinvestment Fund established in section 2FFFFFF of chapter 29; (F) an amount equal to the Massachusetts Child Psychiatry Access Project revenue amount to the Massachusetts Child Psychiatry Access Project Fund established in section 2EEEEEE of chapter 29; (G) an amount equal to the health policy commission revenue amount to the Healthcare Payment Reform Fund established in section 7 of chapter 6D; (H) an amount equal to the immunization revenue amount to the Vaccine Purchase Fund established in section 24N of chapter 111; (I) \$33,700,000 to the Behavioral Health Access and Crisis Intervention Trust Fund established in section 2WWWWW of chapter 29; (J) an amount equal to the center for health information and analysis revenue amount to the Center for Health Information and Analysis Fund established in section 7A of chapter 12C; and (K) \$35,000,000 to the Essential Community Provider Trust Fund established in section 2PPP of chapter 29. The office shall expend amounts in the fund, except for amounts transferred to the Safety Net Provider Trust Fund, the Hospital Investment and Performance Trust Fund, the Population Health Investment Trust Fund, the Non-Acute Care Hospital Reimbursement Trust

Fund, the Managed Care Organization Services Reinvestment Fund, the Massachusetts Child Psychiatry Access Project Fund, the Vaccine Purchase Fund, the Center for Health and Information Analysis Fund, the Healthcare Payment Reform Fund and the Behavioral Health Access and Crisis Intervention Trust Fund, for payments to hospitals and community health centers for reimbursable health services provided to uninsured and underinsured residents, consistent with the requirements of this section, section 69 and the regulations adopted by the office. The amount collected pursuant to clause (viii) of the definition of non-Medicaid managed care organization amount in section 64 shall be dedicated to reducing the shortfall, as described in subsection (b) of section 69, for the year prior to the assessment year. The office shall also annually expend money from the fund for the expenses of the executive office, including the health safety net office under subsection (a), for the administration of the health safety net and related assessments. The office shall also expend not more than \$6,000,000 annually from the fund for demonstration projects that use case management and other methods to reduce the liability of the fund to acute hospitals. All interest earned on the amounts in the fund shall be deposited or retained in the fund. The director shall from time-to-time requisition from the fund amounts that the director considers necessary to meet the current obligations of the office for the purposes of the fund and estimated obligations for a reasonable future period.

(c) For each fiscal year, in the event that federal financial participation is not available for any of the Medicaid expenditures made or to be made from this fund or from amounts transferred from the fund pursuant to paragraphs (A), (B), (C), (D) or (K) of subsection (b), or hospital assessment funding serving as the non-federal share of such expenditures is not available due to the application of any federal law, regulation or policy, such as federal expenditure limits or federal health care-related tax rules, or for any other reason, the amount of each such

forementioned transfer from the fund shall be reduced on a pro-rata basis by multiplying each such expenditure or transfer by a fraction, the numerator of which is the aggregate amount of the transfers from the fund pursuant to paragraphs (A), (B), (C), (D) or (K) of subsection (b) for which federal financial participation will be available and the denominator of which is the aggregate amount the expenditures and transfers from the fund pursuant to paragraphs (A), (B), (C), (D) or (K) of subsection (b) that would otherwise be made.

SECTION 27C. Said chapter 118E is hereby further amended by striking out section 67, as so appearing, and inserting in place thereof the following section:-

Section 67. (a) Subject to all required federal approvals, including any required waivers under 42 CFR 433.68, a hospital's annual liability to the fund shall be calculated in accordance with this section. The annual aggregate liability of all hospitals to the fund shall equal the total hospital assessment amount.

(b) [reserved].

(c) The office shall promulgate regulations establishing an appropriate mechanism for enforcing each hospital's liability to the fund if a hospital does not make a scheduled payment to the fund.

(d) For the purposes of the assessment in this section, all hospitals in the commonwealth shall be divided into the following groups, as determined by the secretary: (i) large group 1 safety net hospitals which, for the purposes of this section, shall mean, any group 1 safety net hospital that had not less than 355 staffed beds in fiscal year 2022, as reported by the center for health information and analysis; (ii) small group 1 safety net hospitals which, for the purposes of this section, shall mean any group 1 safety net hospital that had less than 355 staffed beds in

fiscal year 2022 as reported by the center for health information and analysis; (iii) large group 2 safety net hospitals which, for the purposes of this section, shall mean any group 2 safety net hospital that had not less than 355 staffed beds in fiscal year 2022 as reported by the center for health information and analysis; (iv) small group 2 safety net hospitals which, for the purposes of this section, shall mean any group 2 safety net hospital that had less than 355 staffed beds in fiscal year 2022 as reported by the center for health information and analysis; (v) freestanding pediatric acute hospitals; (vi) academic, teaching and specialty hospitals which, for the purposes of this section, shall mean an academic medical center, teaching hospital or specialty hospital as determined by the center for health information and analysis as of September 30, 2019, but excluding any high public payer hospital; (vii) private acute hospitals which, for the purposes of this section, shall mean a private hospital licensed under section 51 of chapter 111 that contains a majority of medical-surgical, pediatric, obstetric and maternity beds as defined by the department of public health and operating as of September 30, 2019, but excluding any safety net hospital or academic, teaching and specialty hospital; (viii) non-state public hospitals which, for the purposes of this section, shall mean any non-state-owned public hospital in the commonwealth as determined by the secretary; and (ix) non-acute hospitals which, for the purposes of this section shall mean any nonpublic hospital licensed by the department of public health under said section 51 of said chapter 111; provided, however, that non-acute hospital shall not include an acute care hospital under section 25B of said chapter 111 or a nonpublic hospital licensed as an inpatient facility by the department of mental health under section 19 of chapter 19 and regulations promulgated thereunder but not categorized as a class VII licensee under the regulations.

(e) Each of the groups described in subsection (d) shall be subject to the following assessment rates: (i) large group 1 safety net hospitals shall be subject to a rate of 16.510per cent

812 for inpatient services and 8.000 per cent for outpatient services; (ii) small group 1 safety net
813 hospitals shall be subject to a rate of 14.500 per cent for inpatient services and 5.500 per cent for
814 outpatient services; (iii) large group 2 safety net hospitals shall be subject to a rate of 8.100 per
815 cent for inpatient services and 16.200 per cent for outpatient services; (iv) small group 2 safety
816 net hospitals shall be subject to a rate of 16.450 per cent for inpatient services and 9.100 per cent
817 for outpatient services; (v) freestanding pediatric acute hospitals shall be subject to a rate of
818 3.300 per cent for inpatient services and 2.600 per cent for outpatient services; (vi) academic,
819 teaching and specialty hospitals shall be subject to a rate of 4.675 per cent for inpatient services
820 and 1.290 per cent for outpatient services; (vii) private acute hospitals shall be subject to a rate of
821 8.299 per cent for inpatient services and 0.720 per cent for outpatient services; (viii) non-state
822 public hospitals shall be subject to a rate of 1.250 per cent for inpatient services and 1.250 per
823 cent for outpatient services; and (ix) non-acute hospitals shall be subject to a rate of 3.300 per
824 cent for inpatient services and 3.300 per cent for outpatient services; provided, however, that the
825 office shall increase each such rate by the amount necessary to generate 50 per cent of the
826 estimated cost as determined by the secretary of administration and finance, of administering the
827 health safety net and related assessments in accordance with sections 65 to 69, inclusive. If
828 hospital closures or hospital changes in status to a different type of provider would result in a
829 reduction of total hospital assessment amount, the secretary may, by regulation, adjust the
830 assessment rates to ensure the total hospital assessment amount is not reduced by more than
831 \$10,000,000 on an annual basis; provided, however, that any such adjustments to the rates shall
832 ensure the rates remain in the same proportion to each other as established herein. If the total
833 hospital assessment amount collected for the hospital assessment year exceeds the amount
834 necessary to support the non-federal share of amounts transferred pursuant to paragraphs (A),

(B), (C), (D) or (K) of subsection (b) of section 66, the secretary of the executive office of health and human services shall, by regulation, adjust the assessment rates for the subsequent hospital assessment year to ensure the total hospital assessment amount does not exceed the amount necessary to support such expenditures; provided, however, that any such adjustments shall ensure the rates remain in the same proportion to each other as established herein and provided that any such adjustment does not jeopardize federal financial participation. In order to adjust the assessment rates by regulation as described in this subsection, the secretary of the executive office of health and human services shall seek all required federal approvals the secretary deems necessary.

(f) The assessment rates described in subsection (e) shall be applied to each hospital's fiscal year 2023 assessed charges for inpatient and outpatient services as determined by the secretary of health and human services; provided, however, that the term "assessed charges" shall have the meaning ascribed to it in section 64. The total of the resulting products shall equal a hospital's annual assessment liability.

(g) Subject to receipt of all required federal approvals, the executive office shall implement the assessment structure described in this section and shall promulgate regulations, after prior consultation with the Massachusetts Health and Hospital Association, Inc., necessary to support implementation of said assessment structure. In promulgating such regulations, and in consultation with the Massachusetts Health and Hospital Association, Inc. the executive office shall, at a minimum: (i) specify an appropriate mechanism for determination and payment of an acute hospital's liability to the fund; (ii) identify the hospitals that belong to each group identified in subsection (d); (iii) specify an appropriate mechanism for the determination of a hospital's liability in cases of merger or transfer of ownership; and (iv) specify an appropriate mechanism

858 by which any amounts paid by a hospital in excess of a hospital's total annual assessment
859 liability may be refunded or otherwise credited to the hospital. The executive office shall publish
860 or otherwise make available to the Massachusetts Health and Hospital Association, Inc., the data
861 and methodology used in setting the assessment rates and group classification prior to the
862 promulgation of any such regulations.

863 (h) The secretary of health and human services may enforce the payment of required
864 assessments under this section: (i) for hospitals licensed by the department of health, by
865 notifying the department of the unpaid assessments and such information shall be considered by
866 the department in determining suitability in accordance with section 51 of chapter 111 for the
867 hospital or its affiliate provider entities; (ii) by offsetting payments from the office of Medicaid
868 against the claims for payment by the delinquent hospital, against other hospitals or MassHealth-
869 contracted entities under common ownership as the delinquent hospital or against any successor
870 in interest to the hospital or such provider entities under common ownership, in the amount of
871 the delinquent fees owed, including any interest, penalties and reasonable attorneys' fees, and by
872 transferring such funds into the fund; or (iii) creating, after demand for payment, a lien in favor
873 of the commonwealth in an amount not to exceed the delinquent fees owed, including any
874 interest, penalties and reasonable attorneys' fees, encumbering the building in which the
875 delinquent hospital is located, encumbering the real property upon which the delinquent hospital
876 is located, including fixtures, equipment or goods used in the operation of the delinquent
877 hospital, or encumbering any real property in which the delinquent hospital holds an interest.

878 SECTION 28. Section 74 of said chapter 118E, as so appearing, is hereby amended by
879 striking out subsection (k) and inserting in place thereof the following 2 subsections:-

880 (k) The council may contract with a provider of a pooled employer plan, as defined in 29
881 U.S.C. § 1002(43), on behalf of consumers and their personal care attendants.

882 (l) The council may perform other acts necessary or convenient to execute the powers
883 expressly granted to it.

884 SECTION 29. Section 25E of chapter 138 of the General Laws, as so appearing, is
885 hereby amended by adding the following paragraph:-

886 For the purposes of this section, the term “successor supplier” shall mean any person or
887 entity who directly or indirectly acquires the right or obligation to sell an item with a brand name
888 to a wholesaler licensed in the commonwealth. A successor supplier shall acquire such rights or
889 obligations subject to this section. All sales of a brand name item made to a licensed wholesaler
890 prior to succession shall be attributed to the successor supplier for the purposes of determining
891 whether 6 months of regular sales exist pursuant to this section.

892 SECTION 30. Section 44H of chapter 149 of the General Laws, as so appearing, is
893 hereby amended by striking out, in lines 6 and 7, the words “38C to 38N, inclusive, of chapter 7”
894 and inserting in place thereof the following words:- 44 to 57, inclusive, of chapter 7C.

895 SECTION 31. Said section 44H of said chapter 149, as so appearing, is hereby further
896 amended by striking out, in line 14, the words “38C to 38N, inclusive” and inserting in place
897 thereof the following words:- 44 to 57, inclusive, of chapter 7C.

898 SECTION 32. Section 7 of chapter 161A of the General Laws, as so appearing, is hereby
899 amended by striking out, in line 34, the figure “4” and inserting in place thereof the following
900 figure:- 5.

SECTION 33. Said section 7 of said chapter 161A, as so appearing, is hereby further amended by striking out subsection (f) and inserting in place thereof the following subsection:-

(f) The board shall establish subcommittees, which shall include at a minimum a subcommittee on: (i) safety, health and environment; (ii) planning, workforce development and compensation; and (iii) audit and finance. Each member shall participate on not more than 2 subcommittees of the board. Each subcommittee shall have not less than 3 board members. The appointee of the governor who has experience in safety shall chair the subcommittee on safety, health and environment. The appointee of the governor who has experience in public or private finance shall chair the subcommittee on audit and finance. In the case of a vacancy of either the appointee who has experience in safety or the appointee who has experience in public or private finance, the board chair shall designate a subcommittee member to serve as acting subcommittee chair until such time as the vacancy has been filled.

SECTION 34. Said section 7 of said chapter 161A, as so appearing, is hereby further amended by striking out subsection (i) and inserting in place thereof the following subsection:-

(i) The board shall meet as determined by the chair, but not less than 10 times per calendar year.

SECTION 35. Section 2 of chapter 176Q of the General Laws, as so appearing, is hereby amended by striking out, in lines 24 and 25, the words “Massachusetts chapter of the National Association of Health Underwriters” and inserting in place thereof the following words:-
National Association of Benefits and Insurance Professionals – Massachusetts Chapter, Inc.

SECTION 36. The first paragraph of section 12A of chapter 494 of the acts of 1978 is hereby amended by striking out the words “and until December 15, 2025”, inserted by section 7

923 of chapter 26 of the acts of 2023, and inserting in place thereof the following words:- and until
924 December 15, 2027.

925 SECTION 37. The last paragraph of said section 12A of said chapter 494 is hereby
926 amended by striking out the words “December 15, 2025”, inserted by section 8 of said chapter
927 26, and inserting in place thereof the following words:- December 15, 2027.

928 SECTION 38. The introductory paragraph of section 13 of said chapter 494 is hereby
929 amended by striking out the words “and until December 15, 2025”, inserted by section 9 of said
930 chapter 26, and inserting in place thereof the following words:- and until December 15, 2027.

931 SECTION 39. Section 15 of said chapter 494 is hereby amended by striking out the
932 words “and until December 15, 2025”, inserted by section 10 of said chapter 26, and inserting in
933 place thereof the following words:- and until December 15, 2027.

934 SECTION 40. The first paragraph of section 9 of chapter 277 of the acts of 1986 is
935 hereby amended by striking out the words “and until December 15, 2025”, inserted by section 11
936 of said chapter 26, and inserting in place thereof the following words:- and until December 15,
937 2027.

938 SECTION 41. The first sentence of the first paragraph of section 3 of chapter 114 of the
939 acts of 1991 is hereby amended by striking out the words “and until December 15, 2025”,
940 inserted by section 12 of said chapter 26, and inserting in place thereof the following words:- and
941 until December 15, 2027.

SECTION 42. The last paragraph of said section 3 of said chapter 114 is hereby amended by striking out the words “December 15, 2025”, inserted by section 13 of said chapter 26, and inserting in place thereof the following words:- December 15, 2027.

SECTION 43. The first paragraph of section 4 of said chapter 114 is hereby amended by striking out the words “and until December 15, 2025”, inserted by section 14 of said chapter 26, and inserting in place thereof the following words:- and until December 15, 2027.

SECTION 44. The last paragraph of said section 4 of said chapter 114 is hereby amended by striking out the words “December 15, 2025”, inserted by section 15 of said chapter 26, and inserting in place thereof the following words:- December 15, 2027.

SECTION 45. The first paragraph of section 5 of said chapter 114 is hereby amended by striking out the words “and until December 15, 2025”, inserted by section 16 of said chapter 26, and inserting in place thereof the following words:- and until December 15, 2027.

SECTION 46. Chapter 301 of the acts of 1998, as most recently amended by chapter 291 of the acts of 2014, is hereby further amended by striking out sections 1 to 36, inclusive, and inserting in place thereof the following 36 sections:-

Section 1. It is hereby found that the closure of the Naval Air Station hereinafter referred to as NAS South Weymouth, by the United States Government in September of 1997 is detrimental to the economic welfare of the citizens of the commonwealth and, in particular, the towns of Abington and Rockland and the city known as the town of Weymouth. The closure of this military installation imposes upon the commonwealth and its citizens an increased fiscal burden in addition to that incurred by the commonwealth on account of the closure of various other military installations in the commonwealth. It is further found that the full redevelopment

of NAS South Weymouth remains essential for the benefit of the towns of Abington, Rockland and Weymouth, the region and the commonwealth and, to that end, chapter 291 of the acts of 2014 reconstituted the South Shore Tri-Town Development Corporation, or SSTDC, as the Southfield Redevelopment Authority, and this act shall reinforce applicable control over land use and development decisions affecting Abington, Rockland and Weymouth that constitute NAS South Weymouth and strengthen the alignment of interests between the authority, the towns and the master developer as defined herein. Therefore, it is the purpose of this act to promote the expeditious and orderly conversion and redevelopment of NAS South Weymouth for nonmilitary purposes including, but not limited to, commercial, housing, industrial, institutional, educational, governmental, recreational, conservation or manufacturing uses in order to prevent blight, economic dislocation and additional unemployment and to aid and strengthen the local economy, the regional economy and the economy of the commonwealth. In order to achieve these objectives, it is deemed necessary and appropriate to continue the structure of SSTDC, as renamed and reconstituted pursuant to chapter 291 of the acts of 2014, with full powers and authority to carry out this act.

Section 2. It shall be the goal of this act to promote the expeditious acquisition and redevelopment of NAS South Weymouth while addressing the economic, social and environmental needs of the region. Except as otherwise provided in this act, this goal shall be accomplished in a manner consistent with the zoning by-laws. The redevelopment is designed to minimize and mitigate negative off-base impacts on the area such as those on water resources, air quality, traffic and noise, and to limit the impacts to those necessary to achieve community reuse goals and objectives. The redevelopment shall be integrated with the United States government's cleanup of hazardous materials on the base to ensure effective, expeditious and efficient

environmental remediation and protection of public health and welfare in accordance with federal and state law and regulation.

Section 3. There was created by chapter 291 of the acts of 2014 a body politic and corporate, to be known as the Southfield Redevelopment Authority, to carry out this act. The authority is deemed to be a public instrumentality and the exercise by the authority of the powers conferred by this act shall be deemed and held to be the performance of public functions. The authority shall be included within the definition of a “local government unit or local governmental unit”, as defined in section 1 of chapter 29C of the General Laws, and its bonds and notes shall be included within the definition of “local governmental obligations”, as defined in said section 1 of said chapter 29C. The authority shall be included within the definition of a “governmental entity” for purposes of owning public infrastructure improvements pursuant to chapter 293 of the acts of 2006. The authority shall be an “eligible applicant” and a municipality for the purposes of the General Laws and the authority, the town of Rockland, the town of Weymouth and the town of Abington shall be eligible for any financial or other assistance from the Massachusetts School Building Authority and the Massachusetts Department of Transportation pursuant to chapter 90 of the General Laws.

To achieve its primary purpose of securing the redevelopment of NAS South Weymouth for the benefit of the towns of Abington, Rockland and Weymouth, the authority shall be guided in its financing activities with the goal of generating fiscal benefit to the towns stemming from the redevelopment. The authority, during its existence, and the master developer, giving consideration to its economic interests, shall pursue the redevelopment of the underutilized land within NAS South Weymouth in a manner that, in the aggregate, generates revenue for the towns that exceeds the costs that the towns incur for the provision of those municipal services that the

1010 towns are obligated to provide to NAS South Weymouth pursuant to this act. The authority shall,
1011 to the maximum extent feasible and consistent with the zoning by-laws, dispose of all of the
1012 property within the NAS South Weymouth redevelopment area through sale or other transfer
1013 prior to the authority's termination as provided in section 33.

1014 Section 4. As used in this act, the following words shall, unless the context clearly
1015 requires otherwise, have the following meanings:

1016 “Abington appointee”, the member of the board appointed by the town of Abington.

1017 “Advisory board”, the advisory board to the authority established in section 11.

1018 “Affordable and workforce housing plan”, the Affordable and Workforce Housing Plan
1019 for NAS South Weymouth, as adopted by South Shore Tri-Town Development Corporation on
1020 January 24, 2011, and as may be amended.

1021 “Affordable and workforce housing regulations”, the NAS South Weymouth Affordable
1022 and Workforce Housing Regulations, as adopted by South Shore Tri-Town Development
1023 Corporation on January 24, 2011, and as may be amended.

1024 “Agency”, the Massachusetts Development Finance Agency, a Massachusetts body
1025 politic and corporate established in section 2 of chapter 23G of the General Laws, which is the
1026 successor-in-interest to the government land bank under chapter 289 of the acts of 1998.

1027 “Authority”, the authority established in section 3 and, as the context requires, the South
1028 Shore Tri-Town Development Corporation created pursuant to chapter 301 of the acts of 1998.

1029 “Base rate”, the ad valorem property tax rate levied by the town in which the subject
1030 property is located.

1031 “Base revenue”, revenue generated through assessment and collection of the base rate.

1032 “Board”, the board of directors of the Southfield Redevelopment Authority established in
1033 section 9.

1034 “Bond termination date”, the latest date on which all amounts outstanding under bonds or
1035 notes issued by the authority pursuant to this act or by the agency pursuant to section 6 of chapter
1036 293 of the acts of 2006, including all obligations of the authority undertaken in connection with
1037 the issuance of such bonds of the agency, have been paid in full, which date shall be no later than
1038 December 31, 2075.

1039 “Chamber appointee”, the member of the board appointed pursuant to clause (vi) of
1040 subsection (a) of section 9.

1041 “Commercial development”, all nonresidential, nonrecreational and noninstitutional land
1042 uses permissible under the zoning by-laws, including retail, general office, medical office and
1043 industrial uses.

1044 “DDA”, the then-current disposition and development agreement entered into between
1045 the authority and the master developer, as defined herein, as the same may be re-negotiated, re-
1046 stated or amended.

1047 “Dissolution and administration agreement”, the dissolution and administration
1048 agreement authorized pursuant to section 33.

1049 “ENA”, the then-current exclusive negotiation agreement entered into between the
1050 authority and the master developer, as defined herein, as the same may be re-negotiated, re-stated
1051 or amended.

1052 “Executive”, the mayor of Weymouth or the boards of selectmen of the towns of
1053 Abington and Rockland, as applicable.

1054 “Infrastructure”, all infrastructure included in the project.

1055 “Labor appointee”, the member of the board appointed pursuant to clause (iv) of
1056 subsection (a) of section 9.

1057 “Major zoning revision”, a “substantial revision” to the zoning by-laws as that term is
1058 defined and used in the zoning by-laws.

1059 “Master developer”, the master developer as designated pursuant to the most current
1060 ENA and finalized under a DDA.

1061 “Minor zoning revision”, any revision to the zoning by-laws that does not constitute a
1062 major zoning revision as defined herein.

1063 “NAS South Weymouth”, the military base formerly known as the Naval Air Station
1064 South Weymouth, which was disestablished in accordance with the recommendation of the 1995
1065 Base Realignment and Closure Commission, pursuant to 10 U.S.C. § 2687, as amended.

1066 “NAS South Weymouth redevelopment area”, the geographic area delineated in the plans
1067 and maps referenced in section 5.

1068 “NAS South Weymouth region”, (i) towns as defined in this act; and (ii) municipalities
1069 contiguous to the towns; and (iii) all municipalities contiguous to the municipalities in subsection
1070 (ii); provided, however, that the NAS South Weymouth region shall not include the city of
1071 Boston.

1072 “New regulations”, the regulations applicable to all projects at the NAS South Weymouth
1073 redevelopment area for which construction commences after the effective date of this act, which
1074 are adopted pursuant to subsection (i) of section 14.

1075 “Parkway”, the east-west parkway connecting Weymouth street in the town of Rockland
1076 to state highway route 18, Main street, in the town of Weymouth.

1077 “Parkway financing MOA”, the Memorandum of Agreement on Financing for the South
1078 Shore Tri-Town Development Corporation’s Parkway entered into as of March 4, 2010 by and
1079 between the commonwealth and South Shore Tri-Town Development Corporation, as amended
1080 by the First Amendment thereto dated June 15, 2010, and as may be further amended.

1081 “Permanent water and wastewater infrastructure”, (i) water supply, treatment and
1082 distribution; and (ii) sewer collection, treatment and disposal capacity for the project that does
1083 not exist as of the effective date of this act and that may be financed, designed, constructed,
1084 operated and maintained by the master developer pursuant to, and to the extent provided in,
1085 section 15.

1086 “Pledged revenue”, property tax revenue subject to the pledge established in that certain
1087 Amended and Restated Trust Indenture dated as of December 1, 2020 between Southfield
1088 Redevelopment Authority and Wells Fargo Bank, N.A., as Trustee, and relating to Southfield
1089 Redevelopment Authority Revenue Refunding Bonds, Series 2020A, as the same may be
1090 amended from time to time.

1091 “Prior enabling act”, chapter 291 of the acts of 2014.

1092 “Project”, the acquisition, development, improvement, construction, expansion,
1093 reduction, destruction and renovation of all real and personal property and infrastructure,
1094 buildings, structures, utilities and utility services located on, conducted within or otherwise
1095 directly associated with the NAS South Weymouth redevelopment area for all uses that may now
1096 or in the future be contemplated or allowed pursuant to the zoning by-laws, which shall be
1097 owned by the authority, the towns, the commonwealth or any other political subdivision or
1098 public instrumentality of the commonwealth including, but not limited to, all infrastructure for
1099 the provision of gas; cable television; telephone; storm drainage systems; dams; sewage
1100 treatment plants; sewers; water and well systems; roads; highways; bridges; culverts; tunnels;
1101 streets; sidewalks; lighting; parking, including garages; schools; public safety; public works and
1102 administration buildings; parks; cultural and performing arts facilities; recreational facilities;
1103 transportation stations and related facilities; shuttle transportation equipment; fiber and
1104 telecommunication systems; facilities to produce and distribute electricity, including alternate
1105 energy sources such as co-generation and solar installations; the investigation and remediation
1106 associated with the cleanup of actual or perceived environmental contamination in accordance
1107 with applicable governmental regulations; and all other programs, services, systems and other
1108 activities associated therewith, located on, conducted within or otherwise directly associated with
1109 the NAS South Weymouth redevelopment area.

1110 “Resident appointees”, the members of the board appointed pursuant to clause (v) of
1111 subsection (a) of section 9.

1112 “Rockland appointees”, the members of the board appointed by the town of Rockland.

1113 “Secretary”, the secretary of administration and finance.

1114 “Series 2020A bonds”, the Southfield Redevelopment Authority Revenue Refunding
1115 Bonds, Series 2020A issued pursuant to the Amended and Restated Trust Indenture dated as of
1116 December 1, 2020 between Southfield Redevelopment Authority and Wells Fargo Bank, N.A.,
1117 as Trustee.

1118 “Southfield rate”, ad valorem property tax rate levied within NAS South Weymouth
1119 pursuant to section 19, in excess of the base rate and at only that level necessary to fund the
1120 operations of the authority as determined by the board pursuant to said section 19, subject to the
1121 approval of the department of revenue.

1122 “Southfield revenue”, revenue generated in a single tax year through the assessment and
1123 collection of the Southfield rate.

1124 “Taxation plan”, the plan established pursuant to section 19.

1125 “Town appointees”, the Abington, Rockland and Weymouth appointees, collectively.

1126 “Towns”, the towns of Abington and Rockland and the city known as the town of
1127 Weymouth.

1128 “Trust Indenture”, the trust indenture referred to in the definition of “pledged revenue”.

1129 “Weymouth appointees”, the members of the board appointed by the town of Weymouth.

1130 “Zoning by-laws”, the “zoning and land use by-laws for NAS South Weymouth,” in the
1131 form approved by: (i) unanimous vote of the Weymouth Town Council on June 26, 2023; (ii) a
1132 two-thirds majority vote at Abington Special Town Meeting on October 14, 2023 and: (iii) a
1133 two-thirds majority vote at Rockland Special Town Meeting on November 7, 2023, and as they
1134 may be amended.

1135 “Zoning map”, the zoning district map referenced in section 4.3 of the zoning by-laws, in
1136 the form approved by: (i) unanimous vote of the Weymouth Town Council on June 26, 2023; (ii)
1137 a two-thirds majority vote at Abington Special Town Meeting on October 14, 2023 and; (iii) a
1138 two-thirds majority vote at Rockland Special Town Meeting on November 7, 2023, and as they
1139 may be amended.

1140 Section 5. The NAS South Weymouth redevelopment area shall be comprised of the
1141 lands, including all easements, reservations and rights appurtenant thereto, and all buildings,
1142 structures, utilities and improvements located thereon, comprised of the former military base of
1143 that name presently located in the towns of Abington, Rockland and Weymouth and now or
1144 formerly within the ownership, control and jurisdiction of the United States, including, without
1145 limitation, those portions of the base property that have been transferred as of the effective date
1146 of this act to the United States Coast Guard, Federal Aviation Administration or the authority.
1147 Plans and descriptions detailing the precise boundaries and configuration of the NAS South
1148 Weymouth redevelopment area were filed with the secretary and recorded in the Plymouth
1149 registry of deeds as plan number 760 in plan book 42 and the Norfolk registry of deeds as plan
1150 number 525 in plan book 467.

1151 Section 6. Except as otherwise provided in, directed by or limited by this act, the
1152 authority shall have all of the powers necessary or convenient to carry out the purposes and
1153 provisions of this act, including the power to:

1154 (a) exercise the rights provided to municipal governments and agencies under federal
1155 laws and regulations and under the constitution, laws and regulations of the commonwealth
1156 subject to section 31 of chapter 44 of the General Laws;

1157 (b) sue and be sued in all courts and to initiate or participate in actions and proceedings,
1158 whether judicial, administrative, arbitratve or otherwise;

1159 (c) adopt a seal and alter such seal at its pleasure and use it by causing it or a facsimile to
1160 be affixed or impressed or reproduced in any manner;

1161 (d) own, acquire, manage, maintain, modify, operate, convey or lease infrastructure
1162 improvements or any facilities for the project, including the infrastructure for the distribution of
1163 public utilities, including, but not limited to, electricity, gas, water, waste water and sewer and
1164 sewage treatment and disposal, refuse collection and disposal, telecommunications and cable
1165 services and the transportation infrastructure, including, but not limited to, the parkway;

1166 (e) develop, own, manage, operate, regulate or lease wells to procure water from
1167 productive aquifers underlying the NAS South Weymouth redevelopment area in accordance
1168 with sections 38 and 39A of chapter 40 of the General Laws and determine and collect or
1169 authorize the collection on its behalf of assessments and other charges related to constructing and
1170 maintaining such systems, as provided in said chapter 40; provided, however, that the
1171 procurement of such water shall not materially adversely affect the supply of water available to a
1172 town;

1173 (f) own, manage, operate, regulate, convey or lease facilities of common sewers and main
1174 drains and facilities for wastewater and sewage treatment and disposal and determine and collect
1175 or authorize the collection on its behalf, or on behalf of the master developer, of assessments and
1176 other charges related to financing, laying out, constructing, operating and maintaining such
1177 systems, as provided in this act and pursuant to chapter 83 of the General Laws;

1178 (g) own, manage, operate, regulate or lease surface water reservoirs within the NAS
1179 South Weymouth redevelopment area or connect to or otherwise purchase or lease water from
1180 the water system of a town, any other municipality or any other governmental or quasi-
1181 governmental agency or any other public or private entity, including, without limitation, the
1182 Massachusetts water resource authority, for the provision of water within the NAS South
1183 Weymouth region, and manage, operate, regulate, convey or lease any and all systems for the
1184 delivery of such water within the NAS South Weymouth redevelopment area; provided,
1185 however, that the procurement of such water shall not materially adversely affect the supply of
1186 water available to any of the towns;

1187 (h) exercise the power of eminent domain within the NAS South Weymouth
1188 redevelopment area as provided in chapters 79, 79A, 80 and 80A of the General Laws;

1189 (i) appoint, prescribe the qualifications and fix the compensation of employees and pay
1190 the same out of funds of the authority;

1191 (j) appoint legal counsel and fix compensation for such services rendered to the authority;

1192 (k) appoint qualified boards, commissions, committees or subcommittees, including those
1193 responsible for zoning, subdivision and other land use or permitting approvals whose members
1194 need not be directors of the board, and individuals, in addition to the advisory board established
1195 pursuant to section 11, to serve as unpaid advisors under such terms and conditions as it may
1196 deem necessary; provided, however, that such boards, commissions, committees, subcommittees
1197 and individuals may be reimbursed for incidental expenses determined by the authority to be
1198 necessary and incurred while performing the business of the authority;

1199 (l) acquire, hold and dispose of personal property within the NAS South Weymouth
1200 redevelopment area for its corporate purposes;

1201 (m) acquire easements and other interests in land directly associated with the NAS South
1202 Weymouth redevelopment area in connection with the project;

1203 (n) purchase, receive, take by grant, gift, devise, bequest, lease, or otherwise acquire,
1204 own, hold, improve, employ, use or otherwise manage real and personal property or any interest
1205 therein, whether tangible or intangible, for its purposes, located within the NAS South
1206 Weymouth redevelopment area, except for any federally-owned property of the former NAS
1207 South Weymouth which shall be or has been transferred to the United States Coast Guard and
1208 Federal Aviation Administration; provided, however, that when any of the excepted property is
1209 declared to be surplus to the needs of the United States government, the authority may obtain any
1210 and all like interest in the property as described herein;

1211 (o) sell, convey, lease, exchange, transfer or otherwise dispose of all or any of its real or
1212 personal property or any interest therein, using procedures adopted by the authority;

1213 (p) apply for and, for the purposes of this act, accept gifts, loans, grants of property,
1214 funds, money, materials, labor, supplies or services from a person or from the United States
1215 government or its departments or agencies or from an agency of the commonwealth or a political
1216 subdivision thereof, or make agreements with respect to any such gifts, loans or grants, and to do
1217 any and all things necessary, useful, desirable or convenient in connection with procuring,
1218 accepting or disposing of such gifts, loans or grants;

1219 (q) purchase, take, receive, subscribe for, or otherwise acquire, hold, make a tender offer
1220 for, vote, employ, sell, lend, lease, exchange, transfer or otherwise dispose of, mortgage, pledge

1221 or grant a security interest in, use or otherwise deal in and with, bonds and other obligations,
1222 shares or other securities or interests therein issued by others, whether engaged in a similar or
1223 different business or activity;

1224 (r) make and execute agreements, contracts, project labor agreements and other
1225 instruments necessary or convenient in the exercise of the powers and functions of the authority
1226 under this act, including contracts with a person, firm, corporation, municipality, commonwealth
1227 agency, governmental unit or other entity, foreign or domestic;

1228 (s) assess and collect taxes, assessments, special assessments, betterments and fees within
1229 the NAS South Weymouth redevelopment area under the General Laws and the powers granted
1230 by this act, in order to generate revenues to pay the cost of operations of the authority, amounts
1231 due on outstanding indebtedness of the authority, maintenance of the property, environmental
1232 remediation and monitoring of the property and the maintenance of the project, infrastructure
1233 improvements within or associated with the NAS South Weymouth redevelopment area in
1234 accordance with this act, the General Laws, and zoning by-laws, including the funding
1235 provisions thereof and for all other purposes for which cities and towns may assess and collect
1236 such taxes, assessments, special assessments, betterments and fees, and distribute revenues in
1237 accordance with section 19. In connection with the foregoing, the authority shall have all the
1238 powers and authority of cities and towns under chapters 59, 60, 60A, 61B and section 3A of
1239 chapter 64G of the General Laws, and any powers that require adoption by cities and towns if
1240 adopted by the authority;

1241 (t) administer land use, subdivision, zoning and wetland protection controls and
1242 associated permitting, approval and entitlement activities within the NAS South Weymouth

1243 redevelopment area, and to enter into agreements with the towns whereby any such activities
1244 which the authority may determine shall be more effectively administered by a town shall be
1245 within such town's administration, subject to such town's agreement to enter into such
1246 agreement(s); provided, further, that any town's administration of such activities pursuant to any
1247 such agreement(s) shall be consistent with any expedited permitting standards or requirements
1248 then-applicable to the authority's conduct of such activities. Except as otherwise expressly
1249 provided in the zoning by-laws: (i) in the administration of the activities authorized under this
1250 section in the NAS South Weymouth redevelopment area, the authority may take action and
1251 issue permits, approvals, orders of conditions, and other land-use entitlements in accordance with
1252 the procedures and standards from time to time applicable to municipalities and their boards,
1253 commissions and agencies so authorized to take such action or to issue any such permit, order of
1254 conditions, approval or other entitlement under the General Laws; provided, however, that the
1255 regulations developed and adopted by the authority under section 14 may provide for expedited
1256 permitting under which the time frames for action applicable to municipalities and their boards,
1257 commissions and agencies under the provisions of the General Laws are shortened; and (ii) all
1258 such actions, including a failure to take action, and such permits, approvals, orders of conditions
1259 or other land-use entitlements shall have the legal effect and duration as provided in the General
1260 Laws, except for any shortened time frames expressly provided in such regulations. Upon
1261 termination of the authority under section 33, the authority to administer such activities shall be
1262 vested in the towns in accordance with the dissolution and administration agreement and the
1263 General Laws, but no permit, approval, or other entitlement issued by the authority prior thereto
1264 pursuant to this act or pursuant to the prior enabling act or any activity undertaken or
1265 improvement made in accordance therewith shall be affected thereby. As further provided in

1266 subsection (i) of section 14, administration of the following municipal powers pursuant to the
1267 General Laws that do not involve the administration by the authority of such land use,
1268 subdivision, zoning and wetland controls and related entitlement activities shall remain with the
1269 towns in which the applicable real property is located unless expressly granted to said authority
1270 in this act or elsewhere: issuance of building permits by the inspectional services department;
1271 public-health and safety-related matters under the jurisdiction of the local board of health; and
1272 issuance of liquor licenses. For the portions of the NAS South Weymouth redevelopment area
1273 located within each of the towns, the respective town shall be responsible for providing all
1274 services, including police and fire protection, normally and customarily provided by a
1275 municipality within their jurisdiction. In the event that a town does not provide a service it is
1276 required to provide in accordance with this subsection, the authority may provide such service
1277 and charge the town for the cost of providing such a service. With respect to any utilities or
1278 services provided as of the effective date of this act or to be provided in the future within the
1279 NAS South Weymouth redevelopment area by the authority or the towns: (i) an intermunicipal
1280 agreement shall not be required in any circumstance, even to the extent that the provision of such
1281 utilities or services crosses town boundaries, and (ii) the authority or any of the towns shall be
1282 permitted to provide utilities or services to land located outside of a particular town's boundaries
1283 without entering into any additional agreement;

1284 (u) develop, adopt, amend, implement and enforce by-laws and regulations for the
1285 general administration of the NAS South Weymouth redevelopment area pursuant to sections 21
1286 to 33, inclusive, of chapter 40 of the General Laws or as otherwise permitted by law, including
1287 the new regulations;

1288 (v) borrow money at such rate or rates of interest as the authority may determine; issue its
1289 notes, bonds or other obligations to evidence such indebtedness, and secure any of its obligations
1290 by pledging any of its assessments, betterment fees, rents, fees or other revenues or by mortgage
1291 or pledge of all or any of its property, or any interest therein, tangible or intangible, whether then
1292 owned or thereafter acquired, as provided in this act and exercise all other rights and powers of
1293 cities and towns under chapter 44 of the General Laws; provided, however, that said chapter 44
1294 shall not be applicable to the manner of voting or the limitations as to the amount and time of
1295 payment or other details of debts incurred by the authority and, in the event of a conflict between
1296 the provisions of this act and said chapter 44, the provisions of this act shall apply;

1297 (w) arrange for guaranties of its notes, bonds or other obligations by the federal
1298 government, the commonwealth, the towns or by any private insurer or otherwise, and to pay any
1299 premiums therefor;

1300 (x) issue such short and long term notes, bonds or other obligations, whether or not the
1301 interest to the holders is exempt from taxation;

1302 (y) purchase notes, bonds or other obligations of the authority at such price or prices, in
1303 such manner, and upon such terms, as the authority may determine;

1304 (z) invest and reinvest its funds in such investments as may be lawful for fiduciaries in
1305 the commonwealth, and take and hold property as security for the payment of funds so invested,
1306 as provided in section 55 of chapter 44 of the General Laws;

1307 (aa) procure insurance against any loss in connection with its property or the project in
1308 such amounts and from such insurers, including the federal government, and directors and

1309 officers liability insurance, as it may deem necessary or desirable, and to pay any premiums
1310 therefor;

1311 (bb) enter into and perform contracts, project labor agreements, and other agreements,
1312 whether or not they may be deemed to constitute indebtedness under applicable law, for the joint
1313 or separate planning, financing, construction, purchase, operation, maintenance, use, sharing
1314 costs of, ownership, mortgaging, leasing, sale, disposal of, or other participation in facilities,
1315 products or services of any person who engages in business on property owned or controlled by
1316 the authority;

1317 (cc) maintain a principal office within the NAS South Weymouth redevelopment area;

1318 (dd) make any inquiry, investigation, survey, feasibility study or other study which the
1319 authority may deem necessary or advisable to enable it to carry out effectively this act;

1320 (ee) apply to the appropriate agencies and officials of the federal government and the
1321 commonwealth for licenses, permits or approvals, as are ordinarily applied for by cities and
1322 towns, of its plans or the project as it may deem necessary or advisable, and to accept such
1323 licenses, permits or approvals as may be tendered to it by such agencies or officials, upon such
1324 terms and conditions as it may deem appropriate;

1325 (ff) make by-laws and establish committees for the management and regulation of its
1326 affairs as it may deem necessary or advisable and, subject to agreement with bondholders, make
1327 rules pursuant to its own procedures for the use of the project and its property, and establish and
1328 collect assessments, rentals, fees and all other charges for the use of the project under the
1329 jurisdiction of the authority and for services or commodities sold, furnished or supplied by the
1330 authority;

1331 (gg) contract for the environmental remediation, construction, operation or maintenance
1332 of any part of the project, or for services to be performed thereon, and rent parts thereof and
1333 grant concessions thereon, on such terms and conditions as the authority may determine;
1334 provided, however, that any such transaction shall be exempt from the public bidding and
1335 procurement requirements applicable to bodies politic and corporate of the commonwealth
1336 imposed by general or special law, including without limitation, the requirements of chapters 7,
1337 30 and chapter 149 of the General Laws, but excluding sections 28 and 29 of said chapter 149,
1338 and regulations promulgated thereunder so long as the authority has, pursuant to an affirmative
1339 vote and by stating the public convenience and necessity therefor, exempted any such transaction
1340 from such requirement;

1341 (hh) designate the depositories of its money within the commonwealth;

1342 (ii) establish its fiscal year to commence on July 1 and end on June 30 of each year and
1343 change the fiscal year from time to time as the authority may deem necessary and appropriate;

1344 (jj) take such other actions and exercise such other powers as it may deem necessary,
1345 advisable and convenient in the furtherance of the purposes of this act;

1346 (kk) apply for and be eligible for any and all available financial and other assistance
1347 without further approval of any agency of the commonwealth or any other enabling authority
1348 pursuant to any current or future economic development districts or special designations that are
1349 intended to attract new growth, enhance infrastructure investment or incentives, or provide other
1350 economic development benefit to priority areas of the commonwealth;

1351 (ll) maintain, regulate, and otherwise own, manage and operate any street, public way or
1352 public use of a private way within the NAS South Weymouth redevelopment area, including any

1353 sewers, drains, sidewalks and other utilities and infrastructure located in any streets and ways,
1354 until such time any such street, public way, or public use of a private way is transferred to a
1355 town, the master developer, or other third party pursuant to this act or pursuant to land
1356 disposition agreements entered into between the authority, the United States Navy, or the master
1357 developer; and

1358 (mm) assume responsibility for maintaining, monitoring and conducting other activities
1359 imposed by any condition of any license, permit or approval, or by any institutional control
1360 arising under any environmental law or regulation with respect to the project.

1361 Section 7. The authority shall not be obligated to maintain, operate, improve or provide
1362 services, including police and fire protection, for those portions of the NAS South Weymouth
1363 which remain in federal ownership, nor shall the authority bear any responsibility or be liable for
1364 any injury, damage or loss arising out of or in connection with any activities which may occur on
1365 such federal property, nor as a result of any improvements, damage, deterioration or
1366 environmental hazards occurring thereon.

1367 Section 8. In addition to any other duties set forth in this act, the authority shall
1368 coordinate with, and provide information to, the United States and any officials or employees
1369 thereof, regarding any matter relating to the ownership, condition, closure, conversion,
1370 redevelopment or future use or operations of the NAS South Weymouth redevelopment area as
1371 required by the Defense Base Realignment and Closure Act. Notwithstanding any other
1372 provision of law, the authority shall be the only person or entity in the commonwealth authorized
1373 to negotiate, purchase or otherwise obtain on behalf of itself, the commonwealth or any of its
1374 political subdivisions, any fee ownership, easement, lease, license or other interest in any

property in or on the NAS South Weymouth redevelopment area from the United States, except that a governmental entity of the commonwealth may acquire an interest from the authority to such property, if such acquisition and use of the property by a governmental entity of the commonwealth is consistent with the zoning by-laws.

Section 9. (a) The powers and management of the authority, which include all rights and powers of a town council or board of selectmen or mayor of a city or town except as otherwise provided in, directed by, or limited by this act, shall be vested in a board of 9 directors to be appointed as follows: (i) 1 member appointed by the board of selectmen of the town of Abington; (ii) 2 members appointed by the board of selectmen of the town of Rockland; (iii) 2 members appointed by the mayor of the town of Weymouth; (iv) 1 member, who is an experienced labor representative and selected by the president of the Norfolk County Labor Council; (v) 2 members, each of whom shall have legal residency at NAS South Weymouth, 1 of whom shall be appointed by the Southfield Neighborhood Association and 1 of whom shall be appointed jointly by the mayor of the town of Weymouth and board of selectmen of Rockland from 4 candidates nominated by the Southfield Neighborhood Association, provided, however, that if such mayor and board have not jointly appointed a candidate within 14 days of becoming eligible to make such appointment, the board of the authority shall appoint this member by an affirmative vote of at least 5 members from the 4 candidates nominated under this clause; and (vi) 1 member, who shall be a member of the board of the South Shore Chamber of Commerce, selected by said chamber. The board shall appoint a chairman from among its members who shall serve in that capacity at the pleasure of the board.

(b) The terms of all 9 members serving on the board, as constituted on the date hereof, shall expire 3 years following the date of appointment.

1398 Any town appointee may also be removed from the board by the executive of the town
1399 from which he or she was appointed for reasons deemed by such executive to be sufficient and
1400 proper. The resident appointee appointed by the Southfield Neighborhood Association may be
1401 removed from the board by the Southfield Neighborhood Association. The other resident
1402 appointee may be removed from the board by a vote of the executive authority of town of
1403 Weymouth and Rockland for reasons deemed to be sufficient and proper; provided, however,
1404 that if the appointee is appointed by the board of the authority, the appointee may only be
1405 removed by a majority vote of the board of the authority.

1406 The labor representative or chamber representative may be removed by a vote of the
1407 executive authority of at least 2 of the towns. All board members shall be eligible for
1408 reappointment to additional terms at the expiration of their current terms. Vacancies shall be
1409 filled, as applicable, by the respective appointing authority for each such vacancy.
1410 Notwithstanding anything to the contrary, to the extent that any board member's term expires, a
1411 renewal is not affirmatively enacted and a replacement is not immediately identified, the existing
1412 board member shall remain on the board until the vacancy is filled.

1413 (c) The town appointees shall have demonstrated expertise and education and experience
1414 in 1 or more of the following areas: real estate development, housing, finance, planning, or
1415 engineering. The towns shall cooperate to assure the appointment of directors from as many of
1416 the foregoing disciplines as possible. The chamber and labor appointees shall have demonstrated
1417 expertise in large-scale real estate development and demonstrated expertise in 1 or more of the
1418 following areas: housing, finance, business, planning, environment, transportation or municipal
1419 government.

1420 (d) Five members of the board shall constitute a quorum. The board may act only when a
1421 quorum is present, and then only by a majority of those actually voting, which must in all events
1422 include at least 4 affirmative votes.

1423 (e) Directors may receive compensation as determined from time to time by the advisory
1424 board established by section 11. Directors shall receive reimbursement of such incidental
1425 expenses determined by the board to be necessary; provided, however, that the annual
1426 compensation of the directors shall not exceed \$6,250 or 80 per cent of the total combined
1427 average of the annual salaries of the town councilors of the town of Weymouth, whichever is
1428 higher.

1429 (f) Directors shall be residents of the commonwealth. No director or employee of the
1430 authority shall be a local elected public official of the town of Abington, Rockland or
1431 Weymouth, except that residents of the towns of Abington and Rockland who participate in their
1432 respective town meetings shall not be restricted from service as a director or employee of the
1433 authority. Each resident appointee shall maintain a legal residence within NAS South
1434 Weymouth, and each town appointee shall maintain a legal residence in his or her appointing
1435 town, at all times during his or her respective term on the board. Any resident or town appointee
1436 who fails to maintain his or her legal residence as required shall be automatically disqualified
1437 from further service on the board without need for further action by the board or the relevant
1438 appointing authority.

1439 (g) Public employees or appointed officials of the federal government and the
1440 commonwealth and its political subdivisions may serve as directors of the authority so long as

1441 their service as director does not constitute a conflict of interest with their duties as public
1442 employees or appointed officials.

1443 (h) Directors shall be subject to chapter 268A of the General Laws.

1444 (i) The directors may, from time to time, by majority vote designate employees of the
1445 authority, consultants and other individuals to participate on boards, commissions, committees
1446 and other organizations established by the authority or otherwise related to the project as a
1447 representative of the directors.

1448 (j) The directors may, from time to time, by majority vote, authorize a person, other than
1449 a majority of the board, to issue endorsements, certificates and other ministerial documents in
1450 furtherance of actions taken by the board.

1451 (k) The officers and directors of the authority shall have the full protections afforded by
1452 section 13 of chapter 258 of the General Laws to the same extent as municipal officers in a city
1453 or town which has accepted said section 13 of said chapter 258.

1454 (l) Sections 18 to 25, inclusive, of chapter 30A of the General Laws shall apply to the
1455 authority.

1456 Section 10. If a director, or member of his immediate family shall be interested either
1457 directly or indirectly, or shall be a director, officer or employee of or have an ownership interest
1458 in a firm or authority interested directly or indirectly, in a contract or other matter involving the
1459 authority, such interest shall be disclosed to the board and shall be set forth in the minutes of the
1460 board. The member having such interest shall not participate on behalf of the authority in any
1461 proceeding or decision relating to such contract or matter. For the purpose of this section,

1462 immediate family shall include spouse, parent, parent-in-law, brother, brother-in-law, sister,
1463 sister-in-law, son, son-in-law, daughter, daughter-in-law and the parent or child of any of such
1464 individuals.

1465 Notwithstanding the foregoing, or the provisions of chapter 268A of the General Laws,
1466 an interest of a resident appointee or of a member of the immediate family of a resident
1467 appointee arising solely on account of the appointee's or immediate family member's residing at
1468 NAS South Weymouth shall not be disqualifying and shall not be deemed an impermissible
1469 conflict of interest.

1470 Section 11. (a) There shall be an advisory board to the authority consisting of: (i) 1 voting
1471 representative appointed by the town of Abington and 1 voting representative appointed by the
1472 town of Hingham; (ii) 2 voting representatives appointed by the town of Rockland and 2 voting
1473 representatives appointed by the mayor of Weymouth; (iii) 1 voting representative of the
1474 Metropolitan Area Planning Council who shall be a member of and be designated by the board of
1475 the council and who shall reside in Norfolk county; (iv) 1 voting representative of the Old
1476 Colony Planning Council who shall be a member of and be designated by the board of the
1477 council and who shall reside in Plymouth county; and (v) 3 voting representatives to be
1478 appointed by the governor, 1 of whom shall be the secretary or a designee, 1 of whom shall be
1479 the secretary of housing and economic development or a designee and 1 of whom shall have
1480 demonstrated skill and expertise in matters relating to real estate development. The members of
1481 the advisory board representing a town shall be appointed by, and serve at the pleasure of, the
1482 mayor of the town of Weymouth or board of selectmen of each such other town. The members of
1483 the advisory board appointed by the Metropolitan Area Planning Council and the Old Colony

1484 Planning Council shall serve at the pleasure of the councils. The members of the advisory board
1485 appointed by the governor shall serve at the pleasure of the governor.

1486 (b) The total voting membership of the advisory board shall be 11 votes, equally
1487 weighted. The advisory board may act at regular periodic meetings called in accordance with its
1488 by-laws or at a special meeting called by the authority or by a quorum of the advisory board. A
1489 quorum of the advisory board shall consist of a majority of its representatives, but in no event
1490 shall it be less than 4 representatives. The advisory board may act by the affirmative vote of a
1491 majority of the representatives present that constitute a quorum.

1492 (c) For the conduct of its business the advisory board shall adopt and may revise and
1493 amend its own by-laws. The advisory board shall elect from among its members a chairperson, a
1494 vice chairperson and a secretary and such other officers as the advisory board may determine.
1495 Each such officer shall serve in such capacity at the pleasure of the advisory board and may be
1496 removed from such position by majority vote of the advisory board. In the event of a vacancy,
1497 the appointing authority shall fill the vacancy for the unexpired term. Each member of the
1498 advisory board shall serve without compensation but may be reimbursed for all reasonable
1499 expenses incurred in the performance of his or her duties as approved by the advisory board and
1500 the authority.

1501 (d) The purposes of the advisory board shall be as follows: (i) to review the annual report
1502 of the authority and to prepare comments thereon for the benefit of the authority, the governor
1503 and the towns, and to make such examinations of the reports on the authority's records and
1504 affairs as the advisory board deems appropriate; (ii) to hold meetings with the board of directors
1505 of the authority and, at the discretion of the advisory board and with the concurrence of the board

1506 of directors of the authority, special meetings with the board of directors of the authority as it
1507 deems necessary and appropriate on matters relating to the authority, and to hold meetings at
1508 other times as the advisory board may determine; (iii) to make recommendations to the authority
1509 on any budget; (iv) to make recommendations to the governor, the general court and the towns
1510 regarding the authority, its programs, and the project; and (v) to determine, from time to time,
1511 compensation for the directors pursuant to section 9.

1512 (e) The authority shall provide such reasonable administrative and staff support to the
1513 advisory board as may be necessary for the efficient discharge of the advisory board's
1514 responsibilities pursuant to this act.

1515 (f) Notwithstanding the provisions of chapter 268A of the General Laws, an interest of an
1516 advisory board member or of a member of the immediate family of an advisory board member
1517 arising solely on account of the member's or immediate family member's residing at NAS South
1518 Weymouth shall not be disqualifying and shall not be deemed an impermissible conflict of
1519 interest.

1520 Section 12. The board may from time to time hire employees and engage outside vendors
1521 or consultants, or both, as necessary to achieve the orderly functioning of the authority.
1522 Employees of the authority shall not be subject to the provisions of chapter 30 or section 45, 46,
1523 51 or 52 of chapter 31 of the General Laws. Employees of the authority shall be subject to the
1524 provisions of chapter 268A of the General Laws. Compensation for employees of the authority
1525 shall be set by the board.

1526 Section 13. The board may hire, fix and pay compensation, prescribe duties and
1527 qualifications and establish personnel policies without regard to any personnel or civil service

law or personnel or civil service rule of the commonwealth. The employees of the authority shall not be classified employees of the commonwealth. An individual employed by the authority shall be deemed an employee at will and shall serve at the pleasure of the authority.

Section 14. (a) The zoning by-laws shall remain in effect, subject to their modification pursuant to the procedures set forth in this section. Such zoning by-laws, as they may be modified in accordance with this section from time to time, shall supersede the zoning by-laws of the towns with respect to land in the NAS South Weymouth redevelopment area. In recognition of the significant number of housing units allowed by the zoning by-laws in proximity to MBTA communities, the zoning by-laws satisfy the requirements of section 3A of chapter 40A of the General Laws for the project and each of the towns, as applicable, and the project and each of the towns will be eligible for any funding that would be available if a municipality complies with said section 3A of said chapter 40A in recognition of the extent of housing that can be provided in proximity to MBTA communities as a result of the project. "MBTA community" as used herein shall mean an MBTA community as defined in 760 CMR 72.00, regulations for said section 3A of said chapter 40A promulgated by the executive office of housing and livable communities, in consultation with executive office of economic development, the Massachusetts Bay Transportation Authority and the Massachusetts Department of Transportation, as may be amended.

(b) Consistent with current and prior planning for NAS South Weymouth, NAS South Weymouth shall be developed in accordance with the following principles:

(1) notwithstanding anything to the contrary contained in this act or any other general or special law or bylaw or regulation of the authority, or in any existing agreement between the

1550 master developer and the authority or any other entity, of the residential units at NAS South
1551 Weymouth, a minimum of 10 per cent shall meet the requirements of “affordable” housing or
1552 “workforce” housing, as such terms are defined in the affordable and workforce housing plan
1553 and the affordable and workforce housing regulations or the new regulations, as applicable.
1554 Affordable or workforce housing constructed within NAS South Weymouth prior to the effective
1555 date of this act shall be counted towards the aggregate 10 per cent minimum requirement;

1556 (2) further development at NAS South Weymouth should be planned and built-out to
1557 incorporate smart growth principles to the extent feasible with a mix of housing and commercial
1558 development, and transportation choices. Whenever feasible, uses at the project should be
1559 designed to be located within walking distance of each other, or even in the same building.
1560 Sustainable and environmentally-friendly development should also be integrated into the project
1561 with water conservation and building designs that comply with generally accepted “green”
1562 design standards. The project should incorporate green building technologies into aspects of its
1563 infrastructure design, construction and operation, and promote the use of green building
1564 technologies by its vertical residential and commercial builders as well;

1565 (3) passive and active recreational facilities shall be included in the further development
1566 of NAS South Weymouth, with such facilities to include but not be limited to the existing
1567 recreation complex, bicycle and walking paths, picnic areas and nature trails; provided, however,
1568 that notwithstanding the generality of the preceding sentence, the master developer shall not be
1569 required to construct or operate a golf course; and

1570 (4) the master developer shall submit to the authority no later than 2 months after the
1571 approval of same by the Natural Heritage and Endangered Species Program an open space

1572 preservation plan, which shall include a plan for addressing all existing runways, taxiways,
1573 traffic control towers and other infrastructure located on any land zoned open space as of the
1574 effective date of this act. In connection with existing and proposed development at NAS South
1575 Weymouth, the project will provide a significant open space area subject to restrictions for the
1576 ongoing protection of habitat and rare species. The following existing restrictions are on record
1577 affecting land within NAS South Weymouth: (i) First Amended and Restated Grant of
1578 Restriction, East End Parcels Restriction, dated October 22, 2013, by LNR South Shore, LLC as
1579 declarant thereunder and (ii) Second Amended and Restated Grant of Restriction, Golf Course
1580 Parcels Restriction, dated February 26, 2014, by LNR South Shore, LLC as declarant thereunder;
1581 items (i) and (ii) collectively referred to herein as the “restrictions”. Notwithstanding any general
1582 or special law to the contrary, any modifications to the restrictions in connection with the
1583 reconfiguration of the proposed protected open space at NAS South Weymouth, including
1584 modifications that release certain land from the restrictions, is allowed and shall not be subject to
1585 any requirement of section 5A of chapter 3 of the General Laws, provided that the
1586 reconfiguration of such open space is consistent with any then-current conservation and
1587 management permit issued by the National Heritage and Endangered Species Program, or its
1588 successor, for the project within NAS South Weymouth redevelopment area.

1589 (c) Major zoning revisions shall not be effective until such revisions are approved by: (i)
1590 the town in which the land that is the subject of such revision is located; and (ii) the board. No
1591 town shall consider a major zoning revision except at the initiative of the applicable town
1592 executive, the master developer, the town’s planning board, the town council in the case of
1593 Weymouth or a person owning land to be affected by the revision. In addition to the
1594 requirements of chapter 40A of the General Laws, upon the filing of any application for major

zoning revision to the town council in Weymouth or town meetings in Abington or Rockland, the town council or respective town meetings shall give notice of such filing to the authority, whereupon the authority shall publish a notice of a public hearing in a newspaper or general circulation within the NAS South Weymouth redevelopment area, and hold at least 1 public hearing in the NAS South Weymouth redevelopment area or in any 1 of the towns at which the public shall be afforded the opportunity to comment on the proposed revision. Within 90 days of receipt of a petition for a proposed major zoning revision, the receiving town shall convene a meeting of the town council in Weymouth or a town meeting if in Rockland or Abington for the purpose of adopting the proposed major zoning revision. The towns shall notify the authority of any major zoning revisions they may adopt, such notice to be provided within 30 days of obtaining the attorney general's approval of such revision if required pursuant to section 32 of chapter 40 of the General Laws. All other provisions of chapter 40A of the General Laws shall apply, except that the towns may reconsider a proposed major zoning revision pursuant to this act within 6 months of an unfavorable action notwithstanding anything to the contrary in section 5 of said chapter 40A. Pursuant to 53G of chapter 44 of the General Laws, a town may request, and the master developer may elect to provide, reimbursement for legal fees incurred by the town in connection with the passage of this act.

(d) The board shall have the authority to make minor zoning revisions as described in the zoning by-laws. In addition, the board shall within 90 days of the adoption of this act, make all revisions, if any, to the zoning by-laws necessary to make the zoning by-laws conform to this act. The authority shall be responsible for maintaining a codification of the zoning by-law that reflects all major zoning revisions adopted by the various towns and all minor zoning revisions adopted by the board, and all revisions to the zoning map made pursuant to subsection (e).

(e) Revisions to the zoning map shall be made in accordance with the terms of the zoning by-laws.

(f) Revisions to the zoning by-laws pursuant to subsection (d) shall be by majority vote of the board. Prior to approving any minor zoning revision pursuant to said subsection (d), the authority shall formally notify the Towns, shall publish a notice of public hearing in newspapers of general circulation within the NAS South Weymouth redevelopment area, shall hold at least 1 public hearing in the NAS South Weymouth redevelopment area or in any 1 of the towns at which the proposed revision to the zoning by-laws not considered substantial shall be considered and voted upon, and shall afford the opportunity for public comment at such public hearing. The administrative provisions of the zoning by-laws or of any other regulation promulgated by the authority may provide for expedited permitting under which the time frames for actions, including a failure to take action, applicable to municipalities and their boards, commissions and agencies under the provisions of the General Laws may be shortened. Nothing in this section shall require the authority to be governed by the requirements of chapter 30A of the General Laws.

(g) The procedures set forth in this section for adopting revisions to the zoning by-laws shall be exclusive notwithstanding any general or special law to the contrary.

(h) Regulations for the effective implementation and enforcement of the zoning by-laws and revisions thereof shall be developed and adopted by the authority, pursuant to section 6. No regulation shall be adopted by the authority without first publishing notice of same in a newspaper of general circulation within the NAS South Weymouth redevelopment area, holding at least one public meeting in the NAS South Weymouth redevelopment area or in any one of the

towns, and affording the opportunity for public comment. Nothing in this section shall require the authority to be governed by the requirements of chapter 30A of the General Laws.

(i)(1) As authorized in subsection (t) of section 6, the authority shall have exclusive authority to issue and enforce land use, subdivision and zoning permits, approvals, orders of conditions and other entitlements pursuant to the zoning by-law, regulations promulgated pursuant to subsection (h), subdivision regulations, and wetland protection laws in effect within the NAS South Weymouth redevelopment area. Such authority shall include the exclusive jurisdiction to sit as a permit granting authority pursuant to section 15 of chapter 40A of the General Laws. Notwithstanding anything to the contrary contained in this act or any other general or special law or bylaw or regulation of the authority, or in any existing agreement between the master developer or the authority or any other entity, or any combination of the foregoing parties, for the purposes of all projects at the NAS South Weymouth redevelopment area for which construction commences after the effective date of this act, there shall be a new set of regulations developed by the authority governing development, including, without limitation, regarding affordable and workforce housing, and land use, zoning, subdivision and wetlands administration, in each case, in place of any existing regulations in place. Administration of the following municipal powers pursuant to the General Laws that do not involve the administration by the authority of such land use, subdivision, zoning and wetland controls and related entitlement activities shall remain with the towns in which the applicable real property is located unless expressly granted to said authority in this act or elsewhere: (i) issuance of building permits by the inspectional services department; (ii) public-health and safety-related matters under the jurisdiction of the local board of health; and (iii) issuance of liquor licenses. If any building or structure is proposed to be constructed on a lot located within 2

1663 or more towns, the building department or board of health or licensing department, as
1664 appropriate, of the town in which the majority of the gross floor area of the building or structure
1665 is to be located shall have exclusive jurisdiction. Once construction or operation, as appropriate,
1666 has begun pursuant to the applicable permit or license, the town with such jurisdiction shall
1667 retain such jurisdiction, even if subsequent improvements cause the majority of the gross floor
1668 area or operation to be located thereafter in the other town.

1669 (2) The town of Weymouth may issue a maximum of 13 alcoholic beverage licenses
1670 within the portion of the NAS South Weymouth redevelopment area located within Weymouth
1671 in accordance with chapter 138 of the General Laws, the town of Abington may issue a
1672 maximum of 2 alcoholic beverage licenses within the portion of the NAS South Weymouth
1673 redevelopment area located within Abington in accordance with chapter 138 and the town of
1674 Rockland may issue a maximum of 13 alcoholic beverage licenses within the portion of the NAS
1675 South Weymouth redevelopment area located within Rockland in accordance with said chapter
1676 138; provided, however, that said licenses shall not diminish the number of licenses permitted by
1677 the commonwealth to be granted elsewhere within the towns of Weymouth or Rockland. None of
1678 the licenses authorized by this section shall be transferable outside the NAS South Weymouth
1679 redevelopment area. Nothing in this section shall be deemed to limit the ability of the towns to
1680 issue entertainment licenses and temporary alcoholic beverage licenses as it deems necessary and
1681 appropriate for activities occurring within their respective borders.

1682 (j) All decisions and determinations of the authority, whether legislative or adjudicatory
1683 in nature, shall be appealable by persons aggrieved by such decision or determination in
1684 accordance with applicable provisions of the General Laws. Where any applicable General Law
1685 requires notice of any such appeal to be filed with a municipal clerk, such filing shall be made

with the clerk of the authority, and with the clerk of the town or towns in which the land subject to such decision or determination is located.

(k) Nothing in this act shall be interpreted as modifying or abrogating any permit, approval or entitlement issued by the commonwealth in relation to the project and pursuant to any law relating to the protection of human health or the environment.

Section 15. Anything developed within the NAS South Weymouth redevelopment area as of the effective date of this act shall be governed by the then-existing zoning by-laws and regulations promulgated by the authority and currently in effect. The board is hereby directed, (i) within 120 days of the effective date of this act, to revise, re-promulgate, re-issue, re-negotiate and re-execute, as needed, all regulations promulgated by the authority and currently in effect; or (ii) prior to commencement of any new development by the master developer at NAS South Weymouth, to enter into the new regulations or any agreements, including the ENA or DDA, as mutually determined by the authority and the master developer to be necessary, for the purpose of governing any development to occur within the NAS South Weymouth redevelopment area following the effective date of this act. Without limiting the generality of the foregoing, the DDA, as renegotiated pursuant to this section shall:

(a) require that the master developer work with the authority and the towns to develop a plan for procuring, financing, operating and maintaining the existing and permanent water and wastewater infrastructure for the project. The permanent water and wastewater infrastructure may include the construction of a wastewater treatment plant and associated groundwater discharge facilities. Nothing in this section shall prevent the master developer, the authority or the towns from mutually agreeing to assign or delegate the operation and maintenance of the

1708 existing or permanent water and wastewater infrastructure to qualified parties including, without
1709 limitation, any of the towns; and

1710 (b) not include any provision imposing monetary penalties or forfeitures on the master
1711 developer in the event the master developer elects not to develop a golf course as part of the
1712 project.

1713 Section 16. The executive office for administration and finance and the executive offices
1714 of housing and livable communities, economic development and labor and workforce
1715 development shall identify a senior staff member who shall assist the towns with establishing a
1716 method for coordinating 1-stop licensing for all businesses and developments to be located
1717 within the NAS South Weymouth redevelopment area for the purpose of expediting the process
1718 for obtaining commonwealth licenses, permits, certificates, approvals, registrations, charters and
1719 meeting any other requirements of law.

1720 Section 17. Each public agency in the commonwealth, including, without limitation,
1721 agencies such as the Massachusetts Department of Transportation, the department of
1722 environmental protection and the Massachusetts water resources authority, involved in the
1723 development or financing of economic development projects shall develop a coordinated 1-stop
1724 program for businesses, institutions and private parties that may intend to locate in the NAS
1725 South Weymouth redevelopment area in order to enable development activities within the NAS
1726 South Weymouth redevelopment area to be more effectively promoted by the commonwealth.
1727 Further, to promote efficient redevelopment, any construction within or modifications to the
1728 layout of the parkway located within NAS South Weymouth in connection with the project shall
1729 solely require the approval of the authority.

Section 18. (a) The authority may fix, revise, charge, collect, levy and abate betterments, assessments, special assessments and fees, and other charges for the cost, administration and operation of the infrastructure improvements. In providing for the payment of the cost of the infrastructure improvements or for the use of the infrastructure improvements, the authority may avail itself of the General Laws relative to the assessment, apportionment, division, fixing, reassessment, revision, abatement and collection of infrastructure charges, including betterments, assessments, special assessments and fees by municipalities, or the establishment of liens therefor and interest thereon, and the procedures set forth in sections 5 and 6 of chapter 254 of the General Laws for the foreclosure of liens, as it shall deem necessary and appropriate for purposes of the assessment and collection of such infrastructure improvement charges.

Notwithstanding any general or special law to the contrary, the authority may pay the entire cost of any infrastructure improvements, including the acquisition thereof, during construction or after completion, or the debt service of notes or bonds used to fund such costs, from betterments, assessments, special assessments, fees, or other charges, and may establish the betterments, assessments, special assessments, fees or other charges, prior to, during, or a reasonable time following the completion of the construction of such infrastructure improvements. The authority may establish a schedule for the payment of betterments, assessments, special assessments, fees or other charges, not to exceed 40 years. The authority may determine the circumstances under which the betterments, assessments, special assessments, fees and other charges, may be increased, if at all, as a consequence of delinquency or default by the owner of that parcel or any other parcel within the NAS South Weymouth redevelopment area.

(b) The betterments, assessments, special assessments, fees and other charges of general application authorized by this act may be increased in accordance with the procedures to be

1753 established by the authority for assuring that interested persons are afforded notice and an
1754 opportunity to present data, views and arguments. The initial schedule of assessments, special
1755 assessments, fees and other charges, may be adopted by the authority at any scheduled meeting
1756 of the board, provided that notice of the meeting, and the proposed schedule, is sent to each
1757 owner of a parcel within the NAS South Weymouth redevelopment area, by registered or
1758 certified mail at least 7 days prior to the meeting. Thereafter, the authority shall hold at least 1
1759 public hearing on a revision to its schedule of betterments, assessments, special assessments, fees
1760 and other charges thereof prior to adoption by the authority, notice of which revisions shall be
1761 delivered to the towns and shall be published in a newspaper of general circulation in each of the
1762 towns at least 1 month in advance of the hearing. No later than the date of such publications, the
1763 authority shall make available to the public and deliver to the towns the proposed revisions to the
1764 schedule of special assessments, fees, betterments, assessments and other charges. The
1765 betterments, assessments, special assessments, fees and other charges established by the
1766 authority shall not be subject to supervision or regulation by any department, division,
1767 commission, board, bureau or agency of the commonwealth or its political subdivisions,
1768 including without limitation, the towns, except for the approval of the taxation plan and any
1769 amendments thereof requiring approval by the secretary and commissioner of revenue.

1770 (c) The betterments, assessments, special assessments, fees and other charges established
1771 by the authority in accordance with this act shall be fixed and adjusted in respect of the aggregate
1772 thereof so as to provide revenues sufficient: (i) to pay the principal of, premium, if any, and
1773 interest on bonds, notes or other evidences of indebtedness issued by the authority under this act
1774 as the same become due and payable; (ii) to create and maintain such reasonable reserves as may
1775 be reasonably required by a trust agreement or resolution securing bonds or notes; (iii) to provide

1776 funds for paying the cost of necessary repairs, replacements and renewals of infrastructure
1777 improvements; and (iv) to pay or provide for an amount that the authority may be obligated to
1778 pay or provide for by law or contract, including a resolution or contract with or for the benefit of
1779 the holders of its bonds and notes, provided that the authority shall not be required to increase
1780 any mandatory betterments, assessments, special assessments, fees or other charges by virtue of
1781 any individual proprietor delinquencies. Nothing herein shall be deemed to impose a limitation
1782 on the authority's ability to establish, set, or impose betterments, assessments, special
1783 assessments, fees or charges at levels sufficient to meet any covenant requirements that may be
1784 contained in any resolution or contract with or for the benefit of the holders of its bonds or notes,
1785 or otherwise providing security for the same.

1786 (d) As an alternative to levying betterments, assessments, special assessments, fees and
1787 other charges under this act or the General Laws, the authority may levy special assessments on
1788 real estate within the NAS South Weymouth redevelopment area to finance the cost,
1789 administration and operation of the infrastructure improvements. In determining the basis for and
1790 amount of the special assessment, the cost, administration, maintenance and operation of the
1791 infrastructure improvements, including the cost of the repayment of the debt issued or to be
1792 issued by the authority to finance the improvements, may be calculated and levied using any of
1793 the following methods that result in fairly allocating the costs of the infrastructure improvements
1794 to the real estate in the NAS South Weymouth redevelopment area: (1) equally per length of
1795 frontage, or by lot, parcel or dwelling unit, or by the square footage of a lot, parcel or dwelling
1796 unit; (2) according to the value of the property; or (3) in any other reasonable manner that results
1797 in fairly allocating the cost, administration and operation of the infrastructure improvements,

1798 according to the benefit conferred or use received including, but not limited to, by classification
1799 of commercial or residential use or distance from the infrastructure improvements.

1800 (e) The authority may also provide for the following: (1) a maximum amount to be
1801 assessed with respect to any parcel; (2) a tax year or other date after which no further special
1802 assessments under this section shall be levied or collected on a parcel; (3) annual collection of
1803 the levy without subsequent approval of the authority; (4) the circumstances under which the
1804 special assessment levied against a parcel may be increased, if at all, as a consequence of
1805 delinquency or default by the owner of that parcel or any other parcel within the NAS South
1806 Weymouth redevelopment area; and (5) procedures allowing for the prepayment of betterments,
1807 assessments, special assessments, fees and other charges under this act.

1808 (f) Betterments, assessments, special assessments, fees and other charges levied under
1809 this act shall be collected and secured in the same manner as property taxes, betterments,
1810 assessments and fees owed to the towns unless otherwise provided by the authority and shall be
1811 subject to the same penalties and the same procedure, sale and lien priority in case of
1812 delinquency as is provided for such property taxes, betterments and liens owed to the towns.

1813 (g) The appellate tax board shall have jurisdiction within the NAS South Weymouth
1814 redevelopment area pursuant to chapter 58A of the General Laws to the same extent as its
1815 jurisdiction in cities and towns. The authority shall have exclusive responsibility for paying any
1816 reimbursement payments owed under section 69 of chapter 59 of the General Laws, or otherwise,
1817 as a result of the abatement, by such board or another body of competent jurisdiction, of any
1818 property tax assessments made by the authority prior to the complete transition of the assessing
1819 and taxing power to the towns pursuant to subsection (a) of section 19.

1820 Section 19. (a) Notwithstanding any general or special law to the contrary, property taxes
1821 upon personal property, persons, residents and estates lying within the NAS South Weymouth
1822 redevelopment area, shall, commencing as of January 1, 2015, for the fiscal year commencing
1823 July 1, 2015, be imposed, levied and administered by each town for its respective portion of
1824 NAS South Weymouth, consistent with the General Laws that are applicable to municipalities.
1825 The towns shall collect upon the estates, real and personal, within NAS South Weymouth a
1826 property tax rate equal to the base rate plus the Southfield rate. In connection with the foregoing,
1827 the towns shall have all the powers and authority of cities and towns under chapters 40, 59, 60,
1828 60A, 61B and section 3A of chapter 64G of the General Laws including, with respect to unpaid
1829 taxes due and owing as a result of prior assessments by the South Shore Tri-Town Development
1830 Corporation, the exclusive power to exercise enforcement and collection rights pursuant to said
1831 chapter 60 of the General Laws and other relevant law, and may accept a local option under a
1832 general or special law related to the assessment, exemption or enforcement of property taxes and
1833 excises that cities and towns may accept. A property tax bill issued by a town pursuant to this
1834 subsection prior to the town's first opportunity to issue assessments pursuant to section 21 of
1835 said chapter 59 shall be based on the assessed value established by the town in its most recent
1836 assessment of the property in question or such other assessed value as may have been determined
1837 for such property through abatement proceedings. The board shall notify each town of the
1838 Southfield rate to be charged in the next following fiscal year no later than June 1 of each year,
1839 and of the amount of pledged revenue to be remitted to the authority in the next following fiscal
1840 year, as provided below. The Southfield rate shall not be set for any given fiscal year until at
1841 least 45 days after the board provides each executive with written notice of and an opportunity to
1842 comment on the proposed rate and the Authority operating budget on which it is based. During

1843 such 45-day period, the executives in Rockland and Abington, and the town council in
1844 Weymouth to which the rate-setting notice shall be referred by the mayor of Weymouth may
1845 convene a public hearing for the purpose of obtaining public comment on the proposed
1846 Southfield rate. No later than 30 days after collection of property taxes for each fiscal quarter,
1847 each town shall remit to the authority the Southfield revenue collected by such town in the
1848 preceding fiscal quarter. Each town shall also remit to the authority, pledged revenue within 30
1849 days of billing from the authority. Nothing in this act shall be deemed to limit a town's ability, in
1850 respect of any given fiscal year or other period, to remit property tax revenue in excess of
1851 Southfield revenue to the authority. Southfield revenue shall not be deemed to constitute any part
1852 of "total taxes assessed" by the towns for the purposes of administering section 21C of chapter
1853 59 of the General Laws. Land and improvements located within each town's respective portion
1854 of NAS South Weymouth shall, in the fiscal year commencing July 1, 2015, be deemed for all
1855 purposes to be additional new growth within that town within the meaning of paragraph (f) of
1856 section 21C of said chapter 59 and section 23D of said chapter 59.

1857 (b) In consideration of the collection and retention of base revenue pursuant to
1858 subsection(a), each town shall be responsible for providing police and fire protection, emergency
1859 services, schools, maintenance of all public ways or ways maintained and used as public ways,
1860 public works, inspectional and other municipal services, including waste collection, to its
1861 respective portion of NAS South Weymouth except for portions owned or controlled by agencies
1862 of the United States government on the same basis and terms as it provides such services to other
1863 parts of the town and as required by applicable law. Notwithstanding the generality of the
1864 preceding sentence, no town shall be required to provide water or sewer services to any portion
1865 of NAS South Weymouth except pursuant to agreement with the authority or the master

1866 developer. For purposes of determining state education assistance, including without limitation
1867 the calculation of each town's foundation enrollment under chapter 70 of the General Laws, each
1868 school-age child living within NAS South Weymouth shall be counted as a child enrolled in the
1869 town in which the child resides, and all expenses incurred by each respective town on behalf of
1870 such children's education shall be included as expenses of the town incurring such costs in the
1871 determination of each respective town's share of such assistance, including without limitation
1872 each town's foundation budget under said chapter 70.

1873 (c) The authority and the master developer, as the case may be, at its election, shall take
1874 all actions necessary to transfer to the applicable town control of all existing public ways, or
1875 ways maintained and used as public ways, located within NAS South Weymouth, together with
1876 associated infrastructure including public utilities and sewer and storm drain lines located within
1877 or adjacent to the rights of way of such ways, and each town shall, without regard to the
1878 requirements of chapter 82 of the General Laws or other general or special laws, accept the
1879 applicable portion of such way or ways as a public way in said town. The authority and the
1880 master developer, as the case may be, at its election, shall take all actions necessary to transfer to
1881 the applicable town control of, and each town shall accept as a public way, any new public way
1882 and associated infrastructure developed, constructed or acquired by the authority or the master
1883 developer, as the case may be, within NAS South Weymouth following the effective date of this
1884 act provided the board has approved the layout and construction of such way is consistent with
1885 the authority's subdivision regulations, and provided further that the customary street acceptance
1886 procedures of the town in which the way is to be accepted as a public way are substantially
1887 satisfied and such town agrees that the way has been constructed in accordance with the
1888 authority's subdivision regulations. Notwithstanding any general or special law to the contrary:

1889 (i) public ways or portions thereof located within NAS South Weymouth and for which a town
1890 accepts pursuant to this subsection shall be included in the apportionment for such town of state
1891 assistance to cities and towns under chapter 90 of the General Laws or under any other statute or
1892 program providing financial assistance to cities and towns of the commonwealth in connection
1893 with transportation matters; (ii) any other attributes of a town located within NAS South
1894 Weymouth including without limitation population and employment shall likewise be included
1895 for purposes of such apportionment; and (iii) improvement, maintenance, repair or other projects
1896 related to said public ways shall be eligible for such assistance.

1897 (d) Any existing agreements or obligations owed between the towns or the authority or
1898 the prior master developer, or any combination of the foregoing parties, as applicable, related to
1899 the development within the NAS South Weymouth redevelopment area shall be rescinded and
1900 shall have no further force and effect as of January 1, 2020, unless affirmatively assumed by the
1901 authority or the master developer in writing, whether in a new agreement or an amendment or
1902 restatement of such existing agreements or obligation.

1903 (e) Following the termination of the authority in accordance with section 33, each town
1904 shall have the authority to assess, impose, levy and collect property taxes on properties located
1905 within its respective portion of the NAS South Weymouth redevelopment area on the same basis
1906 as such town administers its property tax collection system elsewhere within the town.

1907 (f) Taxes within NAS South Weymouth are currently levied and assessed consistent with
1908 the taxation plan dated October 13, 2014 that was approved by the secretary and the
1909 commissioner of revenue, which taxation plan may be revised from time to time. The taxation
1910 plan details the specific powers and duties of the authority and the towns; provide for the timely

1911 transfer of assessment and collection records from the authority to the towns; detail the oversight
1912 to be provided by the commissioner of revenue regarding the base rate and Southfield rate,
1913 including required reports and other information; and address such other pertinent matters as
1914 determined by the secretary and the commissioner of revenue.

1915 Section 20. (a) The authority may provide by resolution of the board for the issuance of
1916 bonds and notes of the authority for the purposes of paying or refinancing all or any part of the
1917 cost of the project and its infrastructure improvements. Such cost shall include the cost of: (1)
1918 construction, reconstruction, renovation and acquisition of all lands, structures, real or personal
1919 property, rights, rights-of-way, franchises, easements and interests acquired or to be acquired by
1920 the authority, the towns, the commonwealth or any other political subdivision thereof, including
1921 the costs of any infrastructure and improvements to be transferred to the towns in accordance
1922 with subsection (c) of section 19; (2) all machinery and equipment including machinery and
1923 equipment needed to expand or enhance services from the towns, the commonwealth or a
1924 political subdivision thereof to the authority; (3) financing charges and interest prior to and
1925 during construction, and for a period not exceeding 1 year after completion of the construction,
1926 interest and reserves for principal and interest, including costs of municipal bond insurance and
1927 any other type of financial guaranty and costs of issuance; (4) extensions, enlargements,
1928 additions and enhancements to infrastructure improvements; (5) architectural, engineering,
1929 financial and legal services; (6) plans, specifications, studies, surveys and estimates of costs and
1930 of revenues; (7) administrative expenses necessary or incident to the construction, acquisition,
1931 financing, operation and maintenance of the project; and (8) other expenses as may be necessary
1932 or incident to the construction, acquisition, operation, maintenance and financing of the
1933 infrastructure improvements, including the cost of issuing bonds or notes. The authority may

1934 issue up to \$175,000,000 of its bonds. The authority may issue bonds secured in whole or in part
1935 by betterments, assessments, special assessments, fees and other charges, notes, debentures, long
1936 term capital leases, grants and governmental assistance and long-term contracts; provided that,
1937 for so long as the 2020A bonds are outstanding, the authority may not secure any bonds or notes
1938 issued after the effective date of this section with a pledge or other commitment of ad valorem
1939 property taxes assessed by the authority or the towns pursuant to said section 19 with respect to
1940 any of the assessable property under the Trust Indenture. The principal of and interest on such
1941 bonds shall be payable solely from the funds which are identified by the authority and are
1942 permitted by this act to provide for such payment. The bonds of each issue shall be dated, shall
1943 bear interest at such rates, which may be variable or fixed, and shall mature at times not
1944 exceeding 35 years from their dates of initial issuance, as the authority may determine, and may
1945 be made redeemable before maturity, at the option of the authority, at such prices and under such
1946 terms and conditions as the authority may fix prior to the issuance of the bonds. The authority
1947 shall determine the form of the bonds and the manner of execution of the bonds, and shall fix the
1948 denominations of the bonds and the places of payment of principal and interest, which may be at
1949 a bank or trust company within or without the commonwealth and such other locations as
1950 designated by the authority. In the event an officer whose signature or a facsimile of whose
1951 signature shall appear on any bonds shall cease to be an officer before the delivery of the bonds,
1952 the signature or facsimile shall nevertheless be valid and sufficient for all purposes as if such
1953 officer had remained in office until the delivery. The bonds shall be issued in registered form.
1954 The authority may sell the bonds in a manner and for a price, either at public or private sale, as it
1955 may determine to be for the best interests of the authority.

1956 (b) Prior to the preparation of definitive bonds, the authority may, under like restrictions,
1957 issue interim receipts or temporary notes, with or without coupons, exchangeable for definitive
1958 bonds when such bonds have been executed and are available for delivery. The authority may
1959 also provide for the replacement of bonds that shall become mutilated or shall be destroyed or
1960 lost. The authority may issue, from time to time, notes of the authority in anticipation of federal,
1961 state or local grants for the cost of the project and acquiring, constructing or improving the
1962 infrastructure improvements. The notes shall be authorized, issued and sold in the same manner
1963 as provided in, and shall otherwise be subject to, this act. Such notes shall mature at such times
1964 as provided by the issuing resolution of the authority and may be renewed from time to time;
1965 provided, however, that all such notes and renewals thereof shall mature on or before 20 years
1966 from their date of issuance. Bonds and notes may be issued under this act subject only to those
1967 proceedings, conditions or things that are specifically required by this act.

1968 (c) The authority may provide by resolution for issuance of refunding bonds of the
1969 authority for the purpose of refunding bonds then outstanding at maturity or upon acceleration or
1970 redemption. Refunding bonds may be issued at such times prior to the maturity or redemption of
1971 the refunded bonds as the authority deems to be in the public interest. Refunding bonds may be
1972 issued in sufficient amounts to pay or provide for the principal of the bonds being refunded under
1973 this act, and the payment of a redemption premium thereon and interest accrued or to accrue to
1974 the date of redemption of such bonds, and, if deemed advisable by the authority, for the
1975 additional purpose of paying any cost of the project, including the acquisition, constructing or
1976 reconstructing of the infrastructure improvements. The issuance of such bonds, the maturities
1977 and other details thereof, the rights of the holders thereof, and the duties of the authority in
1978 respect to the same shall be governed by this act insofar as the same may be applicable.

1979 (d) While bonds issued by the authority remain outstanding, the powers, duties or
1980 existence of the authority shall not be diminished or impaired in any way that will adversely
1981 affect the interests and rights of the holders of such bonds.

1982 (e) The board may by resolution delegate to a person, other than a majority of the board,
1983 the power to determine any of the matters set forth in this section.

1984 (f) Bonds and notes issued under this section, unless otherwise authorized by law, shall
1985 not be deemed to constitute a debt of the commonwealth or of the towns, or a pledge of the faith
1986 and credit of the commonwealth or of the towns, but such bonds shall be payable solely from the
1987 funds of the authority or as otherwise provided in this act. Unless the towns or the
1988 commonwealth subsequently agree to pay the bonds or notes of the authority, such bonds and
1989 notes shall contain on their faces a statement to the effect that neither the commonwealth nor the
1990 towns shall be obliged to pay the same or the interest thereon and that neither the faith and credit
1991 nor taxing power of the commonwealth or the towns is pledged to the payment of the principal of
1992 or the interest on such bonds or notes. Without limiting the generality of the foregoing, nothing
1993 in this act shall be construed as imposing on any town any obligation with respect to the
1994 repayment of the series 2020A bonds and any debt issued by the authority pursuant to this act.

1995 (g) All bonds or notes issued under this act shall have all the qualities and incidents of
1996 negotiable instruments as defined in section 3-104 of chapter 106 of the General Laws.

1997 (h) Prior to the issuance of bonds with a maturity date later than the date the authority is
1998 required to be terminated pursuant to section 33, the mayor of the town of Weymouth and boards
1999 of selectmen of the towns of Abington and Rockland, in consultation with the authority, shall
2000 enter into an intermunicipal debt service agreement acceptable to the authority, which shall

2001 provide for the continued payment of principal and interest on such bonds and the maintenance
2002 of all required reserves and any other obligations as may be set forth in the applicable bond
2003 instruments from betterments, assessments, special assessments, fees, other charges and other
2004 revenues generated in the NAS South Weymouth redevelopment area and the authority and the
2005 towns may enter into and perform their respective obligations under such debt service
2006 agreement; provided, however, that such agreement shall not extend the duration of the authority
2007 past the date on which it is to be terminated pursuant to section 33.

2008 Section 21. (a) In the discretion of the authority, bonds, refunding bonds or notes may be
2009 secured by a trust agreement by and between the authority and a corporate trustee, which may be
2010 a trust company or bank having the powers of a trust company within or without the
2011 commonwealth. Such trust agreement may pledge or assign the revenues to be received, but shall
2012 not convey or mortgage the project or a part thereof.

2013 (b) Either the resolution providing for the issuance of bonds or notes or the trust
2014 agreement may contain provisions for protecting and enforcing the rights and remedies of the
2015 bondholders as may be reasonable and proper and not in violation of law, including, without
2016 limiting the generality of the foregoing, provisions defining defaults and providing for remedies
2017 in the event thereof, which may include the acceleration of maturities and covenants setting forth
2018 the duties of, and limitations on, the authority in relation to the acquisition, maintenance,
2019 operation, insurance and disposition of property, custody, safeguarding, investment, application
2020 of moneys, use of any surplus bond or note proceeds and establishment of reserves. Such
2021 resolution or trust agreement may contain, but shall not be limited to, covenants by the authority
2022 in relation to the following: (i) the establishment, revision and collection of such betterments,
2023 assessments, special assessments, fees and other charges for services or facilities furnished or

2024 supplied by the authority as shall provide revenues which together with other revenues of the
2025 project, if any, are sufficient to pay: (1) the cost of maintaining, repairing and operating the
2026 project and of making renewals and replacements in connection therewith, (2) the principal of
2027 and the interest on the bonds or notes, as the same shall become due and payable, (3) payments
2028 in lieu of taxes, betterments, assessments, special assessments, fees and other charges and (4)
2029 reserves for all such purposes; (ii) the purposes for which the proceeds of the sale of the bonds or
2030 notes shall be applied and the use and disposition thereof; (iii) the use and disposition of the
2031 gross revenues of the authority from the project, additions thereto and extension and the
2032 infrastructure improvements thereof, including the creation and maintenance of funds for
2033 working capital and for renewals and replacements to the project; (iv) the amount, if any, of
2034 additional bonds or notes payable from the revenues of the project and the limitations, terms and
2035 conditions on which such additional bonds or notes may be issued; and (v) the operation,
2036 maintenance, management, accounting and auditing of the project and of the income and
2037 revenues of the authority.

2038 (c) It shall be lawful for a bank or trust company within or without the commonwealth to
2039 act as depository of the proceeds of bonds or revenues and to furnish such indemnifying bonds or
2040 to pledge such securities as may be required by the authority. Such trust agreement may set forth
2041 the rights and remedies of the bondholders and of the trustee and may restrict the individual right
2042 of action by bondholders as is customary in trust agreements or trust indentures securing bonds
2043 and debentures of authorities. Such trust agreement may contain other provisions as the authority
2044 may deem reasonable and proper for the security of the bondholders. All expenses incurred in
2045 carrying out the provisions of such trust agreement may be treated as a part of the cost of the
2046 operation of the project. The pledge by any such trust agreement or resolution shall be valid and

binding from the time when the pledge is made. The revenues or other moneys so pledged and then held or thereafter received by the authority shall immediately be subject to the lien of such pledge without a physical delivery thereof or further act. The lien of any such pledge shall be valid and binding as against all parties having claims of any kind in tort, contract or otherwise against the authority, irrespective of whether such parties have notice thereof. The financing document by which any pledge is created by the authority shall not be required to be filed or recorded to perfect such pledge except in the official records of the authority and no uniform commercial code filing shall be required to be made. A pledge or assignment made by the authority is an exercise of its political and governmental powers, and revenues, funds, assets, property and contract or other rights to receive the same and the proceeds thereof which are subject to the lien of a pledge or assignment created under this act shall not be applied to purposes not permitted by the pledge or assignment.

(d) In addition to other security provided herein or otherwise by law, bonds, notes or obligations issued by the authority under this act may be secured, in whole or in part, by a letter of credit, line of credit, bond insurance policy, liquidity facility or other credit facility for the purpose of providing funds for payments in respect of bonds, notes or other obligations required by the holder thereof to be redeemed or repurchased prior to maturity or for providing additional security for such bonds, notes or other obligations. In connection therewith, the authority may enter into reimbursement agreements, remarketing agreements, standby bond purchase agreements and any other necessary or appropriate agreements. The authority may pledge or assign the authority's revenues as security for the reimbursement by the authority to the providers of such letters of credit, lines of credit, bond insurance policies, liquidity facilities or

2069 other credit facilities of any payments made under the letters of credit, lines of credit, bond
2070 insurance policies, liquidity facilities or other credit facilities.

2071 (e) In connection with, or incidental to, the issuance of bonds, notes or other obligations,
2072 the authority may enter into such contracts as it may determine to be necessary or appropriate to
2073 place the bonds, notes or other obligations of the authority, as represented by the bonds or notes,
2074 or other obligations in whole or in part, on such interest rate or cash flow basis as the authority
2075 may determine, including without limitation, interest rate swap agreements, insurance
2076 agreements, forward payment conversion agreements, futures contracts, contracts providing for
2077 payments based on levels of, or changes in, interest rates or market indices, contracts to manage
2078 interest rate risk, including without limitation, interest rate floors or caps, options, puts, calls and
2079 similar arrangements. Such contracts shall contain such payment, security, default, remedy and
2080 other terms and conditions as the authority may deem appropriate and shall be entered into with
2081 such parties as the authority may select, after giving due consideration, where applicable, for the
2082 creditworthiness of the counter parties, including a rating by a nationally-recognized rating
2083 agency, the impact on a rating on outstanding bonds, notes or other obligations or other criteria
2084 the authority may deem appropriate.

2085 (f) The authority shall have the power to purchase its bonds or notes out of any funds
2086 available therefor. The authority may hold, pledge, cancel or resell such bonds or notes, subject
2087 to and in accordance with agreements with bondholders.

2088 (g) Any moneys received by the authority, whether as proceeds from the issuance of
2089 bonds or notes, or as revenue or otherwise, may be designated by the board as trust funds to be
2090 held and applied solely as provided in this act.

2091 Section 22. Bonds, refunding bonds and notes issued under this act shall be securities in
2092 which all public officers and public bodies of the commonwealth and its political subdivisions,
2093 all insurance companies, trust companies and their commercial departments and within the limits
2094 set forth in chapter 172 of the General Laws, banking associations, investment companies,
2095 executors, trustees and other fiduciaries, and all other persons whatsoever who are now or may
2096 hereinafter be authorized to invest in bonds or other obligations of a similar nature may properly
2097 and legally invest funds, including capital in their control or belonging to them; and such bonds
2098 are shall be obligations that may properly and legally be made eligible for the investment of
2099 savings deposits and the income thereof in the manner provided in chapter 168 of the General
2100 Laws. Such bonds shall be securities that may properly and legally be deposited with and
2101 received by a state or municipal officer or an agency or political subdivision of the
2102 commonwealth for a purpose for which the deposit of bonds or other obligations of the
2103 commonwealth is now or may hereafter be authorized by law.

2104 Section 23. A holder of bonds or notes issued under this act and a trustee under a trust,
2105 except to the extent the rights herein given may be restricted by the trust agreement, may, either
2106 at law or in equity, by suit, action, mandamus or other proceeding, protect and enforce all rights
2107 under the laws of the commonwealth or granted hereunder or under the trust agreement, and may
2108 enforce and compel the performance of all duties required by this act or by the trust agreement,
2109 to be performed by the authority or by an officer thereof.

2110 Section 24. The towns and the commonwealth are pledged to agree with the holders of
2111 the bonds or notes that neither the towns nor the commonwealth shall limit or alter or cause to
2112 limit or alter the rights hereby vested in the authority to acquire or maintain the project or
2113 infrastructure improvements, to establish and collect betterments, assessments, special

2114 assessments, fees and other charges and to fulfill the terms of any agreements made with the
2115 holders of the bonds or notes nor impair the rights and remedies of the bondholders or
2116 noteholders, until the bonds or notes, together with interest thereon, with interest on any unpaid
2117 installments of interest and all costs and expenses in connection with an action or proceeding by
2118 or on behalf of the bondholders or noteholders, are fully met and discharged.

2119 Section 25. (a) The creation of the authority and the carrying out of its corporate purposes
2120 shall be for the benefit of the people of the commonwealth and shall be a public purpose, and the
2121 authority shall be regarded as performing a governmental function in the exercise of the powers
2122 conferred upon it by this act and shall be required to pay no taxes or assessments upon any of the
2123 property acquired by it or under its jurisdiction, control or supervision or upon its activities.

2124 (b) Any bonds issued under this act, including an exchange, sale or transfer of such
2125 bonds, and any income derived therefrom, and the property of the agency shall at all times be
2126 free from taxation by the commonwealth or any political subdivision or entity thereof to the
2127 extent permitted by federal law.

2128 (c) Bonds or notes issued under this act shall be subject to the same reporting and
2129 oversight requirements that apply to a municipality under the General Laws.

2130 Section 26. The authority shall be liable in contract and in tort in the same manner as a
2131 municipal authority. The directors, officers, employees and agents of the authority, including
2132 members of the advisory board established pursuant to section 10, shall not be liable as such on
2133 their contracts or for torts not committed or directly authorized by them. The property or funds of
2134 the authority shall not be subject to attachment or to levy and sale on execution, but if the
2135 authority refuses to pay a judgment entered against it in a court of competent jurisdiction, the

2136 superior court, sitting within and for Norfolk county or Plymouth county, may direct the
2137 treasurer of the authority to pay such judgment. The real estate owned by the authority shall not
2138 be subject to liens under chapter 254 of the General Laws, but sections 28 and 29 of chapter 149
2139 of the General Laws shall be applicable to any construction work by the authority.

2140 Section 27. Notwithstanding any general or special law to the contrary, the authority shall
2141 be deemed to be a public employer for purposes of chapter 258 of the General Laws.

2142 Section 28. (a) The authority may, if appropriate, make application to the United States
2143 Department of Housing and Urban Development or, as necessary, any other federal agency, to
2144 designate all or a portion of the NAS South Weymouth redevelopment area as an enterprise zone,
2145 pursuant to 42 U.S.C. § 11501 et seq., as amended, or an existing or successor statute for the
2146 purpose of creating jobs and encouraging development in the NAS South Weymouth
2147 redevelopment area.

2148 (b) The NAS South Weymouth redevelopment area and the towns of Abington, Rockland
2149 and Weymouth are hereby designated economic target areas as defined in section 3G of chapter
2150 23A of the General Laws. Pursuant to such designation, certain development projects within the
2151 NAS South Weymouth redevelopment area and the entirety of the towns of Abington, Rockland
2152 and Weymouth shall be eligible for tax deductions, credits and abatements and other economic
2153 incentives as provided for in sections 3D to 3G of said chapter 23A. The authority shall render
2154 such certifications as are required by law for the project within the NAS South Weymouth
2155 redevelopment area, including the designation of economic opportunity areas, and each town
2156 shall render such certifications within portions of the towns not included in the NAS South
2157 Weymouth redevelopment area. The designation of the NAS South Weymouth redevelopment

2158 area and the towns of Abington, Rockland and Weymouth as economic target areas shall be in
2159 addition to any other economic target areas that may be established pursuant to said section 3G
2160 of said chapter 23A. Further, notwithstanding any other general or special law, (i) the authority
2161 and (ii) any projects undertaken by any party within the NAS South Weymouth redevelopment
2162 area shall be eligible for any and all other financial and other assistance authorized by any
2163 general or special law intended to attract new growth, enhance infrastructure investment or
2164 incentives, or provide other economic development benefit to priority areas of the
2165 commonwealth, without the need for any specific designation of or approval of any portion of
2166 the NAS South Weymouth redevelopment area as an area suitable for, or having priority with
2167 regard to, economic development, or similar designations, however named or styled, under any
2168 current or future general or special law.

2169 Section 29. The authority shall be subject to all laws applicable to municipal
2170 redevelopment authorities created under section 4 of chapter 121B of the General Laws. In no
2171 event shall the authority be considered an “agency” for the purposes of the Massachusetts
2172 Environmental Policy Act Regulations, including as such term is defined in 301 CMR 11.02.

2173 Section 30. The authority or its agents may enter into project labor agreements covering
2174 construction performed by it consistent with its powers under this act.

2175 Section 31. The authority shall keep an accurate account of its activities including its
2176 receipts and expenditures. The authority shall prepare annual reports of its activities in the NAS
2177 South Weymouth redevelopment area during the preceding fiscal year and submit such reports to
2178 the governor, secretary, general court, advisory board, mayor of the town of Weymouth, the
2179 town manager of the town of Abington, the town administrator of the town of Rockland, the

2180 town council of the town of Weymouth, the boards of selectmen of the towns of Abington and
2181 Rockland and the town clerk of each of those towns. Each report shall set forth a complete
2182 operating and financial statement covering the authority's operations in the NAS South
2183 Weymouth redevelopment area during the previous year. The authority shall cause an audit of its
2184 books and accounts relating to the NAS South Weymouth redevelopment area to be made at least
2185 once in each fiscal year by certified public accountants. The audit shall be filed with the state
2186 auditor annually not later than 180 days after the end of the authority's fiscal year and shall be in
2187 a form prescribed by the state auditor. The state auditor may audit the authority's books and
2188 accounts in accordance with section 12 of chapter 11 of the General Laws. The state auditor may
2189 investigate the budget, finances, transactions and relationships of the authority at any time and
2190 may examine the authority's records and prescribe methods of accounting and the rendering of
2191 periodic reports. The audits of the authority shall be public records; provided, however, that the
2192 mayor of the town of Weymouth, the town manager of the town of Abington, or the town
2193 administrator of the town of Rockland may each conduct annual audits at the expense of the
2194 respective towns.

2195 Section 32. Chapter 40B of the General Laws shall not apply to the provision of
2196 affordable housing within the NAS South Weymouth redevelopment area. Such affordable
2197 housing within the NAS South Weymouth redevelopment area shall be governed by clause (1) of
2198 subsection (b) of section 14 and the zoning by-laws. None of the land located within the NAS
2199 South Weymouth redevelopment area, nor any of the housing which may be constructed thereon
2200 from time to time, shall be included in any calculation applicable to said chapter 40B with
2201 respect to any of the towns. This section shall continue in full force and effect following the
2202 dissolution of the authority pursuant to section 33.

2203 Section 33. (a) The authority shall be dissolved upon: (i) the bond termination date; and
2204 (ii) the approval of the dissolution and administration agreement by the towns as described in
2205 subsection (b). Within 30 days after: (i) the bond termination date; and (ii) such approval of the
2206 dissolution and administration agreement, the board shall file a certificate acknowledging such
2207 dissolution with the state secretary. The dissolution of the authority shall take effect upon the
2208 filing of such certificate, subject to the applicable provisions of section 51 of chapter 155 of the
2209 General Laws. In connection with the application of said section 51 of said chapter 55, any real
2210 property owned by the authority at the time of dissolution shall be deemed to be distributed
2211 automatically to and become the property of the town in which it is located, consistent with the
2212 dissolution and administration agreement, and the personal property of the authority shall be
2213 equitably allocated to the towns according to the terms of the dissolution and administration
2214 agreement; provided, however, that the authority shall not issue any bonds after the date that is 1
2215 year following the completion of the redevelopment of the NAS South Weymouth
2216 redevelopment area.

2217 (b) At least 24 months prior to the bond termination date, the board shall prepare and
2218 distribute to the towns a dissolution and administration agreement. The dissolution and
2219 administration agreement shall provide, but shall not be limited to, the following: (i) provisions
2220 for the disposition of all real and personal property within the NAS South Weymouth
2221 redevelopment area which the authority owns or has an interest in on the bond termination date;
2222 (ii) provisions for the assumption of all contractual obligations, including all lease agreements of
2223 the authority, which do not expire on the bond termination date; (iii) provisions for the transfer
2224 and assumption by the towns of the authority's zoning administration, licensing and permitting
2225 authorities; and (iv) provisions for the resolution of any other matters relating to the authority

2226 which may affect the interests of the towns. Within 120 days after receipt of the dissolution and
2227 administration agreement, the mayor of the town of Weymouth shall convene a meeting of the
2228 town council of the town of Weymouth and the boards of selectmen of the towns of Abington
2229 and Rockland shall convene a town meeting of their respective towns for the purpose of adopting
2230 by majority vote of the town council and each town meeting the dissolution and administration
2231 agreement. Each town shall vote to adopt or disapprove the agreement as submitted. No
2232 amendments to the agreement shall be made by the towns. Each town shall, within 30 days after
2233 adoption or rejection of the agreement at a town council meeting or a town meeting, as the case
2234 may be, provide the authority with a written notification stating whether the town council or
2235 town meeting adopted or rejected the agreement. Any town that has rejected the agreement shall
2236 have 1 year from the date of such disapproval to reconsider its decision and rescind its rejection
2237 and adopt the dissolution and administration agreement. Once a town adopts the agreement, it
2238 shall not thereafter vote to disapprove or reject it. If all 3 towns have not adopted the agreement
2239 at least 1 year prior to the bond termination date, the authority shall remain in existence and carry
2240 out its functions consistent with this act. If the towns fail to adopt the agreement, the general
2241 court may, at any time after the bond termination date, terminate the authority's existence,
2242 provide for the distribution of its assets and determine other provisions as required for the
2243 dissolution and administration agreement.

2244 Section 34. (a) Notwithstanding any provision of this act to the contrary, the authority
2245 shall perform its obligations under the Parkway Financing MOA, including without limitation,
2246 reimbursement to the commonwealth of any "deficiency payment," as defined in the Parkway
2247 Financing MOA, which obligation of the authority shall constitute a general obligation of the
2248 authority for which the full faith and credit of the authority shall be pledged for the benefit of the

2249 commonwealth. The betterments, assessments, special assessments, fees and other charges
2250 established by the authority in accordance with this act shall be fixed and adjusted so as to
2251 provide revenues at least sufficient to pay, in addition to all other amounts set forth in section 18,
2252 any amounts that the authority may be obligated to pay or provide for, pursuant to the Parkway
2253 Financing MOA or the financing agreement referenced therein. The corporation may collect the
2254 data described in sections 3 and 4 of the Parkway Financing MOA for the purposes described
2255 therein.

2256 (b) The secretary may enter into amendments to the Parkway Financing MOA to allow
2257 for deficiency payments to be deferred or otherwise addressed if the secretary determines that
2258 such treatment is fiscally responsible and serves the public interest.

2259 (c) Additional financing by the commonwealth of “Parkway-Phase 2” and the “East Side
2260 Connectivity Improvements” shall be subject to the commonwealth’s capital plan and its
2261 statutory debt limit.

2262 Section 35. The authority shall not offer new bonds, including the refunding or
2263 refinancing of any outstanding indebtedness, after December 31, 2045 without first obtaining a
2264 two-thirds majority vote from the town council of the town of Weymouth, and the select boards
2265 of the towns of Abington and Rockland.

2266 Section 36. The authority and SSTDC shall be considered a state authority for the
2267 purposes of section 29K of chapter 29 of the General Laws and shall be considered a state entity
2268 for the purposes of section 97 of chapter 6 of the General Laws.

2269 SECTION 47. Section 45 of chapter 139 of the acts of 2001 is hereby amended by
2270 striking out the words “December 15, 2025”, inserted by section 17 of chapter 26 of the acts of
2271 2023, and inserting in place thereof the following words:- December 15, 2027.

2272 SECTION 48. Section 20 of chapter 449 of the acts of 2006 is hereby amended by
2273 striking out the words “December 15, 2025”, inserted by section 18 of said chapter 26, and
2274 inserting in place thereof the following words:- December 15, 2027.

2275 SECTION 49. Section 92 of chapter 194 of the acts of 2011 is hereby amended by
2276 striking out the words “December 15, 2025”, inserted by section 19 of said chapter 26, and
2277 inserting in place thereof the following words:- December 15, 2027.

2278 SECTION 50. Section 112 of said chapter 194 is hereby amended by striking out the
2279 words “December 15, 2025”, inserted by section 20 of said chapter 26, and inserting in place
2280 thereof the following words:- December 15, 2027.

2281 SECTION 51. Section 74 of chapter 10 of the acts of 2015 is hereby amended by striking
2282 out the words “December 15, 2025”, inserted by section 21 of said chapter 26, and inserting in
2283 place thereof the following words:- December 15, 2027.

2284 SECTION 52. Chapter 4 of the acts of 2021 is hereby amended by striking out section 9
2285 and inserting in place thereof the following section:-

2286 Section 9. Notwithstanding any general or special law to the contrary, the bonds that the
2287 state treasurer may issue pursuant to section 34 of chapter 383 of the acts of 2020 shall be issued
2288 for a term not to exceed 30 years. All such bonds shall be payable not later than June 30, 2065,

2289 as recommended by the governor in a message to the general court dated August 14, 2025 under
2290 section 3 of Article LXII of the Amendments to the Constitution.

2291 SECTION 53. Section 74 of chapter 2 of the acts of 2023 is hereby amended by striking
2292 out the words “December 31, 2024”, each time they appear, and inserting in place thereof, in
2293 each instance, the following words:- December 31, 2026.

2294 SECTION 54. Section 23 of chapter 26 of the acts of 2023 is hereby repealed.

2295 SECTION 54A. Item 2000-0100 of section 2 of chapter 28 of the acts of 2023 is hereby
2296 amended by striking out the words “June 30, 2025”, as appearing in section 61 of chapter 248 of
2297 the acts of 2024, and inserting in place thereof the following words:- June 30, 2026.

2298 SECTION 55. Item 7008-1116 of said section 2 of said chapter 28 is hereby amended by
2299 striking out the figure “2025”, as appearing in section 89 of said chapter 248, and inserting in
2300 place thereof the following figure:- 2026.

2301 SECTION 55A. Item 1599-0514 of section 2A of chapter 77 of the acts of 2023 is hereby
2302 amended by inserting after the words “fiscal year 2025” the following words:- and in all
2303 subsequent fiscal years thereafter; provided, that the executive office for administration and
2304 finance, in consultation with the executive office of housing and livable communities, shall
2305 provide a report to the house and senate detailing all fiscal year 2026 spending on the emergency
2306 housing assistance program since July 1, 2025 which has not been previously disclosed in the
2307 offices’ bi-weekly emergency assistance reports.

2308 SECTION 55B. Item 0640-0300 of section 2 of chapter 140 of the acts of 2024 is hereby
2309 amended by inserting after the word “donations” the following words:- and such funds shall be
2310 made available until June 30, 2026.

2311 SECTION 56. Item 1599-0026 of said section 2 of said chapter 140, as amended by
2312 section 99 of chapter 9 of the acts of 2025, is hereby further amended by inserting after the
2313 words “Fido, Inc.” the following words:- and such funds shall be made available until June 30,
2314 2026.

2315 SECTION 56A. Said item 1599-0026 of said section 2 of said chapter 140, as so
2316 amended, is hereby further amended by inserting after the words “development costs” the
2317 following words:- and such funds shall be made available until June 30, 2026.

2318 SECTION 56B. Said item 1599-0026 of said section 2 of said chapter 140, as so
2319 amended, is hereby further amended by inserting after the word “Middleton” the following
2320 words:- and such funds shall be made available until June 30, 2026.

2321 SECTION 56C. Said item 1599-0026 of said section 2 of said chapter 140, as so
2322 amended, is hereby further amended by inserting after the word “Act” the following words:- and
2323 such funds shall be made available until June 30, 2026.

2324 SECTION 57. Item 3000-4060 of said section 2 of said chapter 140 is hereby amended
2325 by adding the following words:-

2326 General Fund...83.94%

2327 High-Quality Early Education & Care Affordability Fund...16.06%

2328 SECTION 57A. Item 4512-0205 of said section 2 of said chapter 140 is hereby amended
2329 by inserting after the words “Healthy Lynnfield” the following words:- and such funds shall be
2330 made available until June 30, 2026.

2331 SECTION 57B. Item 7002-0010 of said section 2 of said chapter 140 is hereby amended
2332 by inserting after the words “inclusive community” the following words:- and such funds shall
2333 be made available until June 30, 2026.

2334 SECTION 57C. Item 7004-0107 of said section 2 of said chapter 140 is hereby amended
2335 by inserting after the word “individuals”, the fourth time it appears, the following words:- and
2336 such funds shall be made available until June 30, 2026.

2337 SECTION 58. Item 7008-0900 of said section 2 of said chapter 140, as amended by
2338 section 100 of chapter 9 of the acts of 2025, is hereby further amended by inserting after the
2339 word “organization”, the first time it appears, the following words:- and such funds shall be
2340 made available until June 30, 2026.

2341 SECTION 59. Said item 7008-0900 of said section 2 of said chapter 140, as so amended,
2342 is hereby further amended by inserting after the words “Business Association, Inc.” the
2343 following words:- and such funds shall be made available until June 30, 2026.

2344 SECTION 59A. Said item 7008-0900 of said section 2 of said chapter 140, as so
2345 amended, is hereby further amended by inserting after the word “programming”, the second time
2346 it appears, the following words:- and such funds shall be made available until June 30, 2026.

2347 SECTION 59B. Said item 7008-0900 of said section 2 of said chapter 140, as so
2348 amended, is hereby further amended by inserting after the word “Springfield”, the first time it
2349 appears, the following words:- and such funds shall be made available until June 30, 2026.

2350 SECTION 59C. Item 7008-1116 of said section 2 of said chapter 140, as amended by
2351 section 65 of chapter 14 of the acts of 2025, is hereby amended by inserting after the word
2352 “center”, the first time it appears, the following words:- and such funds shall be made available
2353 until June 30, 2026.

2354 SECTION 59D. Said item 7008-1116 of said section 2 of said chapter 140, as so
2355 amended, is hereby further amended by inserting after the word “veterans”, the second time it
2356 appears, the following words:- and such funds shall be made available until June 30, 2026.

2357 SECTION 59E. Said item 7008-1116 of said section 2 of said chapter 140, as so
2358 amended, is hereby further amended by inserting after the words “other equipment” the
2359 following words:- and such funds shall be made available until June 30, 2026.

2360 SECTION 59F. Said item 7008-1116 of said section 2 of said chapter 140, as so
2361 amended, is hereby further amended by inserting after the word “Middleton” the following
2362 words:- and such funds shall be made available until June 30, 2026.

2363 SECTION 59G. Said item 7008-1116 of said section 2 of said chapter 140, as so
2364 amended, is hereby further amended by inserting after the word “gazebo”, the first time it
2365 appears, the following words:- and such funds shall be made available until June 30, 2026.

2366 SECTION 59H. Said item 7008-1116 of said section 2 of said chapter 140, as so
2367 amended, is hereby further amended by inserting after the word “Southbridge”, the second time
2368 it appears, the following words:- , and such funds shall be made available until June 30, 2026.

2369 SECTION 59I. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
2370 is hereby further amended by inserting after the word “Framingham”, the first time it appears,
2371 the following words:- and such funds shall be made available until June 30, 2026.

2372 SECTION 59J. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
2373 is hereby further amended by inserting after the word “Beverly”, the second time it appears, the
2374 following words:- and such funds shall be made available until June 30, 2026.

2375 SECTION 59K. Said item 7008-1116 of said section 2 of said chapter 140, as so
2376 amended, is hereby further amended by inserting after the words “city of Boston”, the second
2377 time they appear, the following words:- , and such funds shall be made available until June 30,
2378 2026.

2379 SECTION 59L. Said item 7008-1116 of said section 2 of said chapter 140, as so
2380 amended, is hereby further amended by inserting after the word “Act”, the first time it appears,
2381 the following words:- and such funds shall be made available until June 30, 2026.

2382 SECTION 59M. Item 7010-1192 of said section 2 of said chapter 140, as most recently
2383 amended by section 101 of chapter 9 of the acts of 2025, is hereby further amended by inserting
2384 after the words “New Bedford”, the first time they appear, the following words:- and such funds
2385 shall be made available until June 30, 2026.

2386 SECTION 59N. Said item 7010-1192 of said section 2 of said chapter 140, as so
2387 amended, is hereby further amended by inserting after the word “programs”, the second time it
2388 appears, the following words:- and such funds shall be made available until June 30, 2026.

2389 SECTION 60. Item 8100-0102 of said section 2 of said chapter 140 is hereby amended
2390 by striking out the figure “\$49,000,000”, both times it appears, and inserting in place thereof, in
2391 each instance, the following figure:- \$55,000,000.

2392 SECTION 60A. Item 9110-9002 of said section 2 of said chapter 140 is hereby amended
2393 by striking out the words “for an electronic sign at the Council on Aging” and inserting in place
2394 thereof the following words:- for the Council on Aging.

2395 SECTION 60B. Item 1596-2406 of section 2F of said chapter 140 is hereby amended by
2396 inserting after the word “Program” the following words:- and such funds shall be made available
2397 until June 30, 2026.

2398 SECTION 61. Section 127 of said chapter 140 is hereby amended by striking out the
2399 words “managed care organization reinvestment” and inserting in place thereof the following
2400 words:- Medicaid managed care organization.

2401 SECTION 62. Said section 127 of said chapter 140 is hereby further amended by striking
2402 out the words “total managed care organization services assessment” and inserting in place
2403 thereof the following words:- non-Medicaid managed care organization revenue.

2404 SECTION 63. Section 198 of said chapter 140 is hereby amended by striking out the
2405 words “June 30, 2025” and inserting in place thereof the following words:- June 30, 2026.

2406 SECTION 63A. Subsection (g) of section 205 of said chapter 140 is hereby amended by
2407 striking out the figure “2025” and inserting in place thereof the following figure:- 2026.

2408 SECTION 63B. Subsection (c) of section 206 of said chapter 140 is hereby amended by
2409 striking out the words “October 1, 2025” and inserting in place thereof the following words:-
2410 June 1, 2026.

2411 SECTION 64. Section 222 of said chapter 140 is hereby amended by striking out
2412 subsection (a).

2413 SECTION 65. Item 1599-2625 of section 2A of chapter 1 of the acts of 2025 is hereby
2414 amended by inserting after the word “item”, the tenth time it appears, the following words:- ; and
2415 provided further, that the comptroller shall transfer \$5,995,058 from this item to the Federal
2416 Grants Fund for the purposes of item 4000-0004 in the Massachusetts management, accounting
2417 and reporting system.

2418 SECTION 66. Item 0321-1510 of section 2 of chapter 9 of the acts of 2025, as amended
2419 by section 81 of chapter 14 of the acts of 2025, is hereby further amended by striking out the
2420 figure “\$2,000,000” and inserting in place thereof the following figure:- \$3,000,000.

2421 SECTION 67. Item 0910-0200 of said section 2 of said chapter 9, as amended by sections
2422 82 and 83 of chapter 14 of the acts of 2025, is hereby further amended by inserting after the
2423 words “indigent defendants”, the second time it appears, the following words:- ; provided
2424 further, that not later than February 27, 2026, the inspector general shall conduct an investigation
2425 and submit a report to the house and senate clerks, the joint committee on public safety and
2426 homeland security and the house and senate committees on ways and means that shall include,
2427 but shall not be limited to: (i) a detailed accounting of expenditures made by the sheriffs’ offices

2428 in fiscal year 2025; (ii) an analysis of sheriffs' offices' compliance with chapter 29 of the
2429 General Laws in fiscal year 2025; (iii) a review of spending by sheriffs' offices on activities not
2430 specifically required by statute, case law or court order and how such spending has changed over
2431 time; (iv) an analysis of compensation levels and changes over the preceding 3 fiscal years,
2432 including comparisons among sheriffs' offices and to the department of correction; and (v)
2433 recommendations to ensure compliance with said chapter 29, if necessary, among sheriffs'
2434 offices; provided further, that each sheriff's office shall comply with all requests from the office
2435 of the inspector general for any information deemed necessary to conducting said investigation
2436 and submitting said report, including, but not limited to, requests for the production of records;
2437 provided further, that the sheriffs' offices shall not receive supplemental funding beyond the
2438 funding appropriated in this act prior to the submission of said report; provided, however, that
2439 funds shall be made available to the sheriffs' offices for: (1) section 87A of chapter 127 of the
2440 General Laws funded through the Communications Access Trust Fund established in section
2441 2XXXXXX of said chapter 29; and (2) facilities that treat men with alcohol or substance use
2442 disorder under sections 1 and 35 of chapter 123 of the General Laws.

2443 SECTION 68. Said item 0910-0200 of said section 2 of said chapter 9, as so amended, is
2444 hereby further amended by striking out the figure "\$6,256,039" and inserting in place thereof the
2445 following figure:- \$6,756,039.

2446 SECTION 69. Item 2300-0100 of said section 2 of said chapter 9 is hereby amended by
2447 inserting after the word "Chelmsford" the following words:- ; provided further, that not less than
2448 \$87,373 shall be expended by the department's office of biodiversity for efforts to increase
2449 biodiversity and to protect and prepare vulnerable maritime ecosystems from climate impacts
2450 and unlock their potential for carbon sequestration.

2451 SECTION 70. Said item 2300-0100 of said section 2 of said chapter 9 is hereby further
2452 amended by striking out the figure “\$2,547,475” and inserting in place thereof the following
2453 figure:- \$2,634,848.

2454 SECTION 70A. Item 7008-1116 of said section 2 of said chapter 9 is hereby amended by
2455 inserting after the word “analysis” the following words:- ; provided further, that not less than
2456 \$23,500 shall be expended to The Coast Guard Heritage Museum in the town of Barnstable to
2457 fund the final payment of the Massachusetts State House Coast Guard Memorial Mural on the
2458 2nd floor of the State House

2459 SECTION 70B. Said item 7008-1116 of said section 2 of said chapter 9 is hereby further
2460 amended by striking the figure “\$25,826,000” and inserting in place thereof the following
2461 figure:- \$25,849,500

2462 SECTION 71. Item 7506-0100 of said section 2 of said chapter 9 is hereby amended by
2463 inserting after the word “College” the following words:- ; provided, that not less than \$75,000
2464 shall be expended for a workforce development program called Skill Surge at Holyoke
2465 community college.

2466 SECTION 71A. Section 88 of chapter 14 of the acts of 2025 is hereby amended by
2467 striking out the words “October 15”, both times they appear, and inserting in place thereof, in
2468 each instance, the following words:- December 31.

2469 SECTION 71B. Section 97 of said chapter 14 is hereby amended by striking out the word
2470 “January” and inserting in place thereof the following word:- September.

2471 SECTION 71C. Notwithstanding section 23 of chapter 59 of the General Laws, section
2472 31 of chapter 44 of the General Laws or any other general or special law to the contrary, a city,
2473 town or district that was a member unit of the Hampshire County Group Insurance Trust in fiscal
2474 years 2026 or 2027 or before may amortize over fiscal years 2027 to 2032, inclusive, in equal
2475 installments or more rapidly, the amount of its unanticipated fiscal year 2026 or 2027 Hampshire
2476 County Group Insurance Trust health insurance-related deficit; provided, that the member unit
2477 shall certify in writing to the division of local services of the department of revenue prior to June
2478 30, 2027 that the member unit has withdrawn from the Trust. The commissioner of revenue shall
2479 issue guidelines or instructions: (i) as to the amount that constitutes unanticipated fiscal year
2480 2026 or 2027 health insurance-related deficit under this section; and (ii) for reporting the
2481 amortization of deficits authorized by this section. The local appropriating authority, as defined
2482 in section 21C of said chapter 59, shall adopt a deficit amortization schedule in accordance with
2483 the department of revenue’s guidelines or instructions before setting the municipality’s fiscal
2484 year 2027 tax rate.

2485 SECTION 72. Notwithstanding section 16B of chapter 62C of the General laws, no
2486 penalty shall be imposed for an underpayment of tax due on or after January 1, 2024 pursuant to
2487 said section 16B of said chapter 62C if the penalty would cause undue financial hardship, as
2488 determined by the commissioner of revenue. The commissioner shall publish guidance related to
2489 undue financial hardship not later than 30 days after the effective date of this act.

2490 SECTION 73. Notwithstanding section 68 of chapter 118E of the General Laws or any
2491 other general or special law to the contrary, the secretary of health and human services shall
2492 implement the health care-related assessment on managed care organization services, established
2493 under said section 68 of said chapter 118E, as a broad-based and uniform assessment, in

2494 accordance with 42 CFR 433.68(b), with the managed care organization services assessment
2495 rate, as such term is defined in section 64 of said chapter 118E, implemented as the single broad-
2496 based and uniform rate applicable to all managed care organization services subject to
2497 assessment, as such term is defined in said section 64 of said chapter 118E. Upon converting the
2498 health care related assessment on managed care organization services to a broad-based and
2499 uniform assessment applicable to all managed care services subject to assessment, as such term
2500 is defined in said section 64 of said chapter 118E, the initial managed care organization services
2501 assessment rate shall be equal to the rate that had been applicable to the tax group containing
2502 commercial managed care services immediately preceding the implementation of the broad-
2503 based and uniform application of the assessment. The managed care organization services
2504 assessment rate for each calendar year, beginning the first January 1 following the conversion of
2505 the health care related assessment on managed care organization services to a broad-based and
2506 uniform assessment, shall be broad-based and uniform across all managed care services subject
2507 to assessment and shall continue to be implemented in a manner consistent with 42 CFR 433.68.

2508 SECTION 74. Notwithstanding section 2 of chapter 128A of the General Laws, sections
2509 1, 2, 2A, 4 and 9 of chapter 128C of the General Laws or any other general or special law to the
2510 contrary, the running race horse meeting licensee located in Suffolk county licensed to conduct
2511 live racing pursuant to said chapter 128A and simulcast wagering pursuant to said chapter 128C
2512 in calendar year 2025 shall remain licensed as a running horse racing meeting licensee and shall
2513 remain authorized to conduct simulcast wagering pursuant to said chapter 128C until December
2514 15, 2027; provided, however, that the days between January 1, 2025 and December 31, 2027
2515 shall be dark days pursuant to said chapter 128C and the licensee shall be precluded from
2516 conducting live racing during that period unless it applies for and is granted a supplemental live

2517 racing license pursuant to said chapter 128A; provided further, that the licensee shall not
2518 simulcast or accept a wager on greyhound dog racing on or after August 10, 2023 pursuant to
2519 section 9 of said chapter 128C; provided further, that all simulcasts shall comply with the
2520 Interstate Horse Racing Act of 1978, 15 U.S.C. 3001 et seq. or other applicable federal law;
2521 provided further, that all simulcasts from states that have racing associations that do not require
2522 approval in compliance with the Interstate Horse Racing Act of 1978, 15 U.S.C. 3004(a)(1)(A)
2523 shall require the approval of the New England Horsemen's Benevolent & Protective Association
2524 prior to being simulcast to a racing meeting licensee within the commonwealth; and provided
2525 further, that if the association agrees to approve the simulcast for 1 racing meeting licensee, it
2526 shall approve the simulcast for all otherwise eligible racing meeting licensees.

2527 SECTION 75. Notwithstanding any general or special law to the contrary, section 18 of
2528 chapter 28 of the acts of 2023 shall not be in effect for the purposes of establishing the annual
2529 spending threshold set pursuant to subsection (f) of section 2BBBBBB of chapter 29 of the
2530 General Laws for the fiscal year ending June 30, 2027.

2531 SECTION 76. Notwithstanding any general or special law to the contrary, to the extent
2532 that immunization recommendations and requirements established in the commonwealth are
2533 conditioned upon alignment with the recommendations made by the Advisory Committee on
2534 Immunization Practices of the federal Centers for Disease Control and Prevention, the
2535 commissioner of public health shall review said recommendations and requirements established
2536 in the commonwealth and shall, in consultation with the vaccine program advisory council
2537 established in section 24N of chapter 111 of the General Laws, establish alternative standards as
2538 the commissioner may deem necessary to assure the maintenance of public health and the
2539 prevention of disease in the commonwealth.

2540 SECTION 77. Notwithstanding any other general or special law to the contrary,
2541 employees of the economic development and industrial corporation of Boston who became
2542 employed by the city of Boston on or after June 29, 2024 with no break in service between the
2543 corporation and the city shall have a 1-time opportunity to purchase as creditable service in the
2544 Boston retirement system prior service to such organization rendered before the member joined
2545 the system; provided, that prior to the date any retirement allowance becomes effective, the
2546 member shall pay into the annuity savings fund of the system in 1 sum, or in installments, upon
2547 such terms and conditions as the system may prescribe, make-up payments of an amount equal to
2548 that which would have been withheld as regular deductions from the member's regular
2549 compensation had the member been eligible for membership and been a member of the system
2550 during such previous period, together with buyback interest. Former employees of the economic
2551 development and industrial corporation shall be members in service of the system when they
2552 apply for the purchase of service credit and may request an estimate of the cost of their service
2553 purchase from the system prior to becoming an employee of the city of Boston.

2554 SECTION 78. Notwithstanding any general or special law to the contrary, at the direction
2555 of the secretary of administration and finance, the comptroller shall make tax revenue collected
2556 from capital gains income above the threshold established in section 5G of chapter 29 of the
2557 General Laws in fiscal year 2025 available to the General Fund in the amount necessary to
2558 eliminate any deficits in the budgetary funds pursuant to section 5C of said chapter 29. After
2559 satisfying the previous provision, the comptroller shall transfer any remaining excess capital
2560 gains income as follows: (i) 90 per cent to the Transitional Escrow Fund established in section 16
2561 of chapter 76 of the acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022; (ii) 5
2562 per cent to the Commonwealth's Pension Liability Fund established in paragraph (e) of

2563 subdivision (8) of section 22 of chapter 32 of the General Laws; and (iii) 5 per cent to the State
2564 Retiree Benefits Trust Fund established in section 24 of chapter 32A of the General Laws.

2565 SECTION 79. Notwithstanding any general or special law to the contrary, in fiscal year
2566 2025, the comptroller shall transfer \$10,000,000 from the General Fund to the Massachusetts
2567 Life Sciences Center established in section 3 of chapter 23I of the General Laws for
2568 programming and operations that advance efforts related to life sciences and spur economic
2569 growth in the commonwealth.

2570 SECTION 79A. Notwithstanding any general or special law to the contrary, the secretary
2571 of health and human services shall seek all required federal approvals the secretary deems
2572 necessary to implement sections 14A, 14B, 14C, 23A, 25A, 27A and 27C, including any
2573 required waivers under 42 CFR § 433.68 necessary to implement the hospital assessment
2574 described in section 67 of chapter 118E of the General Laws. If, after having received any
2575 required federal approval necessary to implement said sections 14A, 14B, 14C, 23A, 25A, 27A
2576 and 27C, such approval is withdrawn or is otherwise not in effect or if the secretary determines
2577 that a change in federal law or regulations or the administration of any such federal law or
2578 regulation requires a modification to the hospital assessment described in said section 67 of said
2579 chapter 118E or to the implementation of the Health Safety Net Trust Fund established in section
2580 66 of said chapter 118E, the Non-Acute Care Hospital Reimbursement Trust Fund established in
2581 section 2WWWW of chapter 29 of the General Laws, the Safety Net Provider Trust Fund
2582 established in section 2AAAAA of said chapter 29, the Hospital Investment and Performance
2583 Trust Fund established in section 2TTTTT of said chapter 29 or the Population Health
2584 Investment Trust Fund established in section 2UUUUU of said chapter 29, the secretary shall
2585 provide written notification to the joint committee on health care financing and the house and

2586 senate committees on ways and means and shall collaborate with the Massachusetts Health and
2587 Hospital Association, Inc. to develop alternatives prior to implementation.

2588 Not later than February 15, 2026, and annually thereafter, the secretary shall report to the
2589 joint committee on health care financing and the house and senate committees on ways and
2590 means: (i) the amount of the assessment made and collected from each hospital pursuant to said
2591 section 67 of said chapter 118E; and (ii) the amounts transferred to, deposited in, expended from
2592 and transferred from the Hospital Investment and Performance Trust Fund established in said
2593 section 2TTTTT of said chapter 29 and the Population Health Investment Trust Fund established
2594 in said section 2UUUUU of said chapter 29.

2595 SECTION 79B. Notwithstanding any general or special law to the contrary, the
2596 comptroller, at the direction of the secretary of administration and finance, shall transfer in both
2597 fiscal year 2026 and 2027 not less than \$50,000,000 each such fiscal year from the
2598 Commonwealth Care Trust Fund established in section 2000 of chapter 29 of the General Laws
2599 to the Health Safety Net Trust Fund established in section 66 of chapter 118E of the General
2600 Laws; provided, that such transfers shall be in addition to any other transfers from said
2601 Commonwealth Care Trust Fund to said Health Safety Net Trust Fund required in fiscal years
2602 2026 or 2027; provided further, that such funds shall be used first to reduce the shortfall, as
2603 described in subsection (b) of section 69 of said chapter 118E, for health safety net fiscal years
2604 2026 and 2027, and that any remaining funds may be used to reduce the shortfall in any other
2605 open health safety net fiscal year; and provided further, that the amount equal to any federal
2606 financial participation revenues claimed and received by the commonwealth for eligible
2607 expenditures made from said Health Safety Net Trust Fund through funds transferred pursuant to

2608 this section from said Commonwealth Care Trust Fund shall be credited to said Health Safety
2609 Net Trust Fund.

2610 SECTION 80. The salary adjustments and other economic benefits authorized by the
2611 following collective bargaining agreements shall be effective for the purposes of section 7 of
2612 chapter 150E of the General Laws:

2613 (1) the agreement between the University of Massachusetts and the Clerical/Technical
2614 Unit (CTU), MTA, Unit L92, effective from July 1, 2024 through June 30, 2027;

2615 (2) the agreement between the Barnstable County Sheriff's Office (BCSO) and the
2616 Barnstable County Captain Union, National Correctional Employees Union (NCEU), Unit L152,
2617 effective from July 1, 2024 through June 30, 2027,

2618 (3) the agreement between the Berkshire County Sheriff's Office (BCSO) and the
2619 National Correctional Employees Union, Unit SB1, effective from July 1, 2024 through June 30,
2620 2027,

2621 (4) the agreement between the Barnstable County Sheriff's Office and the National
2622 Correctional Employees Union Local 150, Unit S10, effective from July 1, 2024 through June
2623 30, 2027;

2624 (5) the agreement between the Dukes County Sheriff's Office and the Massachusetts
2625 Correction Officers Federated Union (MCOFU), Unit SD1, effective from July 1, 2025 to June
2626 30, 2028;

2627 (6) the agreement between the University of Massachusetts and the Massachusetts
2628 Teachers Association/Department Chairs (DCU), Boston Campus, Unit B50, effective from July
2629 1, 2024 through June 30, 2027; and

2630 (7) the agreement between the Plymouth County Sheriff's Office and the New England
2631 Police Benevolent Association (NEPBA) Local 193, Unit SP5, effective from July 1, 2024
2632 through June 30, 2027.

2633 SECTION 81. Section 72 is hereby repealed.

2634 SECTION 82. Sections 15, 24 to 27, inclusive, 61, 62 and 73 shall take effect on the later
2635 of: (i) the effective date of amendments to 42 CFR 433.68 disallowing the higher taxation of
2636 Medicaid taxable units as compared to non-Medicaid taxable units; or (ii) the end of any
2637 federally established or approved transition period applicable to the health care related
2638 assessment on managed care organization services, established under section 68 of chapter 118E
2639 of the General Laws, as amended by section 130 of chapter 140 of the acts of 2024. The
2640 executive office of health and human services shall notify the clerks of the house of
2641 representatives and the senate not later than 10 days after the effective date pursuant to this
2642 section.

2643 SECTION 82A. Sections 14A, 14B, 14C, 23A, 25A, 27A, 27C and 79A shall take effect
2644 upon the date on which the secretary receives all federal approvals deemed necessary to
2645 implement said sections. The executive office of health and human services shall provide notice
2646 not later than 10 days after the effective date pursuant to this section.

2647 SECTION 82B. Section 27B shall take effect on December 31, 2025.

2648 SECTION 82C. Section 79B shall take effect on October 1, 2025.

2649 SECTION 83. Section 81 shall take effect on March 1, 2026.